

Neesen 1678 (parallel)

Neesen — Theologia Moralis Christiana (Cologne 1678)

Latin–English parallel text: Tract. I, Q. I dubb. VI & IX; Q. II dubb. V, VII, VIII, IX; Q. III dubb. IV; and one passage De Haeresi

<i>Latin</i>	<i>English</i>
BLOCK A — Tractatus I, Quæstio I, Dubium VI** ### <i>An ut revelatio sit objectum formale fidei debeat esse immediata, an vero sufficiat mediata; consequenter an propositio, quæ non est in se revelata sed tantum sequitur ex revelata, sit de fide. PDF 32 (foot) – 36 = printed 12 (foot) – 16.</i> Running heads verified: p. 12 <i>Tractatus Primus</i> ; p. 13 <i>De fide Theologica & ejus objecto.</i> ; p. 14 <i>Tractatus Primus</i> ; p. 15 <i>De fide Theologica & ejus objecto.</i> [thus, without the h]; p. 16 <i>Tractatus Primus</i> .**	BLOCK A — Tractatus I, Quæstio I, Dubium VI** ### <i>Whether, for a revelation to be the formal object of faith, it must be immediate, or whether a mediate one suffices; and consequently whether a proposition which is not revealed in itself but only follows from what is revealed is of faith. PDF 32 (foot) – 36 = printed 12 (foot) – 16.</i> Running heads

<i>Latin</i>	<i>English</i>
	verified: p. 12 <i>Tractatus Primus</i> ; p. 13 <i>De fide Theologica & ejus objecto.</i> ; p. 14 <i>Tractatus Primus</i> ; p. 15 <i>De fide Teologica & ejus objecto.</i> [thus, without the h]; p. 16 <i>Tractatus Primus</i> .**
[...] (the dubium begins mid-column; the preceding paragraph ends "...in re attestata secundum sua principia intrinseca.")	[...] (the dubium begins mid-column; the preceding paragraph ends "...in the thing attested according to its intrinsic principles.")
DUBIUM VJ.	DUBIUM VJ.
<i>An ut revelatio sit objectum formale fidei debeat esse immediata, an vero sufficiat mediata; & consequenter an propositio, quæ non est in se revelata sed tantum sequitur ex revelata, sit de fide.</i>	<i>Whether, for a revelation to be the formal object of faith, it must be immediate, or whether a mediate one suffices; and consequently whether a proposition which is not revealed in itself but only follows from what is revealed is of faith.</i>
NOtandum revelationem immediatam appellari illam, qua aliquid immediatè & in se manifestatur, qualis est revelatio hujus, Deus est Pater, Filius & Spiritus Sanctus. Verbum caro factum est &c. revelatio vero mediata appellatur illa, qua aliquid manifestatur non in se	It is to be noted that that revelation is called immediate by which something is manifested immediately and in itself, such as is the revelation of this: God is Father, Son, and

<i>Latin</i>	<i>English</i>
sed in aliquo alio expressè & immediatè revelato, qualis est hujus: Christus habet voluntatem humanam; quæ manifestatur in hac; Christus est homo.	Holy Ghost; <i>the Word was made flesh</i> , etc. But that revelation is called mediate by which something is manifested not in itself but in some other thing expressly and immediately revealed, such as is the revelation of this: Christ has a human will; which is manifested in this: Christ is man.
Porro hic controvertitur an non solum revelatio immediata sed	Now here it is disputed whether not only immediate but
& mediata sit objectum formale fidei; & consequenter an propositio quæ non est in se revelata, sed tantum sequitur ex revelatis, sit de fide.	mediate revelation also is the formal object of faith; and consequently whether a proposition which is not revealed in itself, but only follows from things revealed, is of faith.
Pro hujus explicatione præmittendum, virtuale seu mediatam revelationem semper applicari per discursum, seu per naturalem connexionem revelationis immediatæ cum mediata: quod quidem potest fieri dupliciter; & primò quidem sic, ut non tantum ipsa revelatio, sed simul quoque ipsa connexio	For the explanation of this it must be premised that a virtual or mediate revelation is always applied by discourse, that is, by the natural connexion of the immediate revelation with the mediate: which indeed

<i>Latin</i>	<i>English</i>
consequentis cum antecedente ingrediatur adæquatum objectum formale credendi; ita scilicet ut quis credat alicui propositioni partim propter revelationem, partim propter evidentiam consequentiæ, quâ illa ex principiis de fide deducitur; ita nempe ut ipsa evidentia consequentiæ sit objectum partiale formale assensus fidei. Secundo vero modo sic, ut ipsa revelatio mediata se solâ sit objectum totale formale assensus fidei, prævio tamen discursu tanquam conditione explicante revelationem mediatam contineri in immediata. Quibus præmissis.	can happen in two ways. And first thus, that not only the revelation itself, but at the same time the connexion of the consequent with the antecedent, should enter into the adequate formal object of believing; that is to say, so that a man believes some proposition partly on account of the revelation, partly on account of the evidence of the consequence by which it is deduced from principles of faith; that is, so that the evidence of the consequence is itself a partial formal object of the assent of faith. But in a second way thus, that the mediate revelation by itself alone is the total formal object of the assent of faith, with a previous discourse nevertheless as a condition explaining that the mediate revelation is contained in the immediate. These things being premised:
Dico 1. nulla mediata revelatio applicata per discursum tanquam per rationem	I say 1. No mediate revelation applied by

<i>Latin</i>	<i>English</i>
formalem assentiendi, est objectum formale fidei; ratio est: quia fides nostra tantum innititur testimonio primæ veritatis revelantis, adeoque nullatenus inniti potest evidentia consequentiæ; quippe qui alioquin non esset certior quam sit cognitio illius consequentiæ; eo quod nullus assensus posset esse certior sua ratione formali cui innititur: & ita in omni argumentatione assensus conclusionis numquam est certior assensu consequentiæ: & idcirco quamvis antecedens esset certissimum; si tamen consequentia sit solum probalis, assensus conclusionis solum quoque erit probabilis. Præterea omnes assensus fidei divinæ debent esse æqualiter certi; quod non esset verum, si cum testimonio divino posset admisceri aliqua ratio naturalis, propter quam, tanquam partiale objectum formale, assentiremur.	discourse as by the formal reason of assenting is the formal object of faith. The reason is: because our faith rests only upon the testimony of the first truth revealing, and therefore can in no way rest upon the evidence of the consequence; since otherwise it would not be more certain than is the knowledge of that consequence, for the reason that no assent can be more certain than its formal reason upon which it rests: and so in every argumentation the assent of the conclusion is never more certain than the assent of the consequence: and therefore, although the antecedent were most certain, yet if the consequence be only probable, the assent of the conclusion also will be only probable. Besides, all assents of divine faith ought to be equally certain; which would not be true if some natural

<i>Latin</i>	<i>English</i>
	reason could be mingled with the divine testimony, on account of which, as a partial formal object, we should assent.
Dico 2. aliqua revelatio mediata applicata per discursum solum tanquam conditionem explicantem revelationem mediatam contineri in immediata, potest esse objectum formale fidei, & consequenter aliqua propositio, quæ non est immediate revelata, sed solum deducitur ex revelatis, potest esse de fide; nimirum illa quæ tanquam conclusio infertur evidenter ex duabus præmissis de fide, idque ideo quia significatum conclusionis implicite sem-	I say 2. Some mediate revelation applied by discourse only as a condition explaining that the mediate revelation is contained in the immediate can be the formal object of faith, and consequently some proposition which is not immediately revealed, but only deduced from things revealed, can be of faith; namely that which as a conclusion is evidently inferred from two premises of faith; and this for the reason that the signified of the conclusion is implicitly al-
per continetur sub significato alterius aut utriusque præmissæ, atque ita semper est saltem implicite revelatum; prout contingit in hoc syllogismo. omnis qui habet potestatem à Christo absolvendi, illam verè habuit; sed Sanctus Petrus	ways contained under the signified of one or of both of the premises, and thus is always at least implicitly revealed; as happens in this syllogism: everyone who has

<i>Latin</i>	<i>English</i>
habuit potestatem absolvendi à Christo; ergo illam verè habuit.	the power of absolving from Christ, truly had it; but Saint Peter had the power of absolving from Christ; therefore he truly had it.
Dico 3. sic quoque propositio particularis contenta in universali expressè revelata, est quoque de fide: ratio est, quia in ipsa universali immediatè in se revelata confusè quoque revelatur qnælìbet sub ea particularis, ita scilicet ut idem sit revelare aliquam propositionem universalem, ac revelare omnes particulares sub ea contentas: & ideo quando particularis aliqua infertur ex universali, non infertur propriè una propositio distincta ab aìtera; quia licet hæ duæ verbis differant, non differunt tamen formaliter seu significato; quia eandem rem significant, dum ex significato generaliter sumpto infertur significatum particulariter sumptum. Et propterea idem est revelare hanc universalem, statutum est omnibus hominibus semel mori, ac revelare statutum esse, Joannem, Petrum & Paulum & alia hominis individua semel mori. Sic quoque hæc propositio universalis, omnes homines in Adam peccaverunt, est immediatè revelata, &	I say 3. In this way too a particular proposition contained in a universal one expressly revealed is likewise of faith. The reason is, because in the universal proposition itself, immediately revealed in itself, there is also confusedly revealed every particular under it, so namely that it is the same thing to reveal some universal proposition as to reveal all the particulars contained under it: and therefore, when some particular is inferred from the universal, there is not properly inferred one proposition distinct from the other; because although these two differ in words, yet they do not differ formally or in their signified, since they signify the same thing, while

<i>Latin</i>	<i>English</i>
in ea omnes individuæ sub ea contentæ, saltem confusè; eo quod illarum significatum sit revelatum à Deo, quamvis aliis verbis: qui enim testatur omnem hominem in Adam peccasse, etiam testatur Joannem, Petrum, & Paulum, & reliqua hominis individua, in Adam peccasse; idque non solùm mediantè aliqua consequentia, sed immediatè & secundum se, licet aliis verbis: & eapropter etsi quoque formetur syllogismus & adsit evidentia consequentia; illa tamen non ingreditur formale objectum assensus fidei, sed solum proponet & applicabit intellectui ipsam rationem, sive objectum formale assensus fidei.	from the signified taken generally there is inferred the signified taken particularly. And for that reason it is the same thing to reveal this universal, <i>it is appointed</i> <i>unto men once to die</i>, as to reveal that it is appointed that John, Peter, and Paul, and other individuals of man, should die once. So too this universal proposition, all men have sinned in Adam, is immediately revealed, and in it all the individual propositions contained under it, at least confusedly; for the reason that their signified is revealed by God, although in other words: for he who testifies that every man has sinned in Adam also testifies that John, Peter, and Paul, and the remaining individuals of man, have sinned in Adam; and this not only by the mediation of some consequence, but immediately and according to itself, though in other

<i>Latin</i>	<i>English</i>
	words: and on that account, even if a syllogism be formed and the evidence of the consequence be present, yet that evidence will not enter into the formal object of the assent of faith, but will only propose and apply to the intellect the very reason, or formal object, of the assent of faith.
Dices, antedicta regula fallit in multis exemplis, nam licet hæc universalis sit expressè & immediatè in se revelata, omnis homo ritè baptizatus est in gratia, item hæc, omnis homo perfectè contritus est in gratia, item hæc omnis hostia verè consecrata continet corpus Christi, non sunt tamen de fide hæc particulares, ergo Joannes baptizatus est in gratia, ergo Petrus contritus est in gratia, & in hac hostia in altari existente est corpus Christi.	You will say, the aforesaid rule fails in many examples; for although this universal is expressly and immediately revealed in itself, every man rightly baptized is in grace, likewise this, every man perfectly contrite is in grace, likewise this, every host truly consecrated contains the body of Christ, yet these particulars are not of faith: therefore John who is baptized is in grace, therefore Peter who is contrite is in grace, and in this host existing on the altar there is the body of Christ.

<i>Latin</i>	<i>English</i>
Resp. id esse verum, ex quo	I answer that this is true, from which
tamen non sequitur regulam antedictam esse falsam: sicuti enim qui testatur omnem hominem esse rationalem, idem quoque testatur Joannem, Petrum, Paulum esse rationalem: ita quoque qui testatur omnem hominem ritè baptizatum esse in gratia testatur quoque quemlibet in particulari ritè baptizatum esse in gratia: non tamen per hoc testatur Joannem, Petrum, Paulum esse in gratia; quia non testatur illos verè baptizatos: unde si in præfatis exemplis fide constaret Joannem Petrum & Paulum esse verè Baptizatos aut perfectè contritos, esset quoque de fide ipsos esse in gratia; ita quoque si ex fide constaret hanc individuum hostiam esse verè consecratam, de fide quoque esset corpus Christi in ea contineri.	nevertheless it does not follow that the aforesaid rule is false: for just as he who testifies that every man is rational likewise testifies that John, Peter, and Paul are rational, so too he who testifies that every man rightly baptized is in grace testifies also that each one in particular rightly baptized is in grace: yet he does not by this testify that John, Peter, and Paul are in grace, because he does not testify that they were truly baptized. Whence, if in the aforesaid examples it were established by faith that John, Peter, and Paul were truly baptized or perfectly contrite, it would likewise be of faith that they are in grace; so too, if it were established from faith that this individual host was truly consecrated, it would likewise be of faith that the

<i>Latin</i>	<i>English</i>
	body of Christ is contained in it.
Quando autem conclusio aliqua infertur ex una de fide, & altera solummodò naturaliter cognita, non potest eatenus fide credi.	But when some conclusion is inferred from one premise of faith and another known only naturally, it cannot on that account be believed by faith.
Ratio est quia nihil potest esse de fide nisi sit à Deo revelatum; sed ejusmodi conclusio non est à Deo revelata; ergo non est de fide. Probatur subsumptum, quia ejusmodi conclusio non infertur immediatè ex propositione revelata, sed solum mediante propositione naturaliter cognita, quæ à Deo non est revelata: Præterea conclusio semper sequitur debiliorem partem antecedentis; quæ debilior pars, cùm non sit de fide, ut supponitur, nec ipsa conclusio potest esse de fide.	The reason is that nothing can be of faith unless it be revealed by God; but a conclusion of that kind is not revealed by God; therefore it is not of faith. The premise subsumed is proved, because a conclusion of that kind is not inferred immediately from a revealed proposition, but only by the mediation of a proposition naturally known, which is not revealed by God. Besides, the conclusion always follows the weaker part of the antecedent; which weaker part, since it is not of faith, as is supposed, neither can the conclusion itself be of faith.

<i>Latin</i>	<i>English</i>
Dices, Ecclesia multas hujusmodi conclusiones deducit ex principiis fidei, & illas fidelibus credendas proponit, quæ tamen nec in Scriptura nec traditione sunt revelatæ; ergo tales sunt de fide. Præterea non aliter scimus illas à Deo esse revelatas nisi mediante hoc discursu, quidquid habetur in Scriptura, traditionibus & Ecclesiæ definitionibus est à Deo revelatum; sed hæ & illæ conclusiones sunt tales; ergo sunt à Deo revelatæ.	You will say, the Church deduces many conclusions of this kind from the principles of faith, and proposes them to the faithful to be believed, which nevertheless are revealed neither in Scripture nor in tradition; therefore such are of faith. Besides, we do not otherwise know that they are revealed by God save by the mediation of this discourse: whatever is had in Scripture, in the traditions, and in the definitions of the Church is revealed by God; but these and those conclusions are such; therefore they are revealed by God.
Respons. Quamvis Ecclesia multas propositiones, quæ ex vi suæ significationis inferuntur ex propositionibus revelatis, definiat esse de fide, & contrarias damnet tanquam hæreticas; non tamen ita definit propositiones, quæ præcisè inferuntur ex una revelata, idque ratione solum connexionis inter utriusque significatum, prout patet in hac,: Christus est risibilis,	I answer. Although the Church defines many propositions to be of faith which by force of their signification are inferred from revealed propositions, and condemns the contraries as heretical, yet she does not so define propositions which are inferred precisely from

<i>Latin</i>	<i>English</i>
quæ licet inferatur ex hac, Christus est verus homo, quæ est de fide, ipsa tamen non est talis; quia non infertur ex altera vi suæ significationis; quia prior nullatenus significat secundam; & hinc Ecclesia dum similes propo-	one revealed proposition, and that only by reason of the connexion between the signified of both; as is plain in this: Christ is risible, which although it be inferred from this, Christ is true man, which is of faith, yet itself is not such; because it is not inferred from the other by force of its signification, since the former in no way signifies the latter. And hence the Church, when she defines like propo-
positiones definit, tantum declarat illas esse certas; contrarias verò erroneas; & idcirco qui ejusmodi propositiones negaret ab Ecclesia licet definitas, non esset propterea, ut sic, hæreticus; quamvis tamen talis foret consecutivè; quatenus nimirum per hoc implicite assereret, Ecclesiam in suis definitionibus posse errare.	sitions, only declares them to be certain, and the contraries erroneous; and therefore he who should deny propositions of this kind, though defined by the Church, would not on that account, as such, be a heretic; although nevertheless such a man would be so consequentially, inasmuch as by this he would implicitly assert that the Church can err in her definitions.

<i>Latin</i>	<i>English</i>
<i>[End of Dubium VI; DUBIUM VII (= VII) follows immediately.]</i>	<i>[End of Dubium VI; DUBIUM VII (= VII) follows immediately.]</i>
BLOCK B — Tractatus I, Quæstio I, Dubium IX** ### An Fidei possit subesse falsum. PDF 41–46 = printed 21–26. <i>(The commission specified PDF 41–44 = printed 21–24; but the dubium in fact runs on to the foot of col. a and the head of col. b of printed p. 26, where it ends immediately before DUBIUM. X. Pages 25–26 were therefore rendered from the source PDF at the same 400 dpi and are transcribed here so that the block runs “heading to the end, immediately before DUBIUM X.” as instructed. See sic-note B-1.)</i> Running heads verified: p. 21 <i>De fide Theologica & ejus objecto.</i>; p. 22 <i>Tractatus Primus</i>; p. 23 <i>De fide Theologica & ejus objecto.</i>; p. 24 <i>Tractatus Primus</i>; p. 25 <i>De fide Theologica & ejus objecto.</i>; p. 26 <i>Tractatus Primus.</i>**	BLOCK B — Tractatus I, Quæstio I, Dubium IX** ### Whether falsehood can lie beneath faith. PDF 41–46 = printed 21–26. <i>(The commission specified PDF 41–44 = printed 21–24; but the dubium in fact runs on to the foot of col. a and the head of col. b of printed p. 26, where it ends immediately before DUBIUM. X. Pages 25–26 were therefore rendered from the source PDF at the same 400 dpi and are transcribed here so that the block runs “heading to the end, immediately before DUBIUM X.” as instructed. See sic-note B-1.)</i> Running heads verified: p. 21 <i>De fide Theologica & ejus objecto.</i>; p. 22 <i>Tractatus Primus</i>; p. 23 <i>De fide Theologica & ejus objecto.</i>; p. 24 <i>Tractatus Primus</i>; p. 25 <i>De fide</i>

<i>Latin</i>	<i>English</i>
	<i>Theologica & ejus objecto.;</i> p. 26 <i>Tractatus Primus.**</i>
[...] (the preceding dubium ends: “unde in hoc <i>differunt</i> fideles ab hæreticis, quod hi reducant fidem suam ad invisibile testimonium Spiritus Sancti, fideles verò ad testimonium Ecclesiæ hoc vel illud tanquam de fide proponentis.”)	[...] (the preceding dubium ends: “whence in this the faithful <i>differ</i> from heretics, that these latter reduce their faith to the invisible testimony of the Holy Ghost, but the faithful to the testimony of the Church proposing this or that as of faith.”)
DUBIUM IX.	DUBIUM IX.
<i>An Fidei possit subesse falsum.</i>	<i>Whether falsehood can lie beneath faith.</i>
REsp. neg. quia quidquid est de fide, est divinâ autoritate confirmatum; implicat autem aliquid esse divinâ autoritate confirmatum & esse falsum.	I answer: no. Because whatever is of faith is confirmed by divine authority; but it implies a contradiction that a thing should be confirmed by divine authority and be false.
2. Si fides in nobis possit esse principium assensus falsi, Deus esset causa istius falsitatis; ratio est; quia Deus non est minus causa fidei quam luminis naturalis; sed si lumen naturale esset principium alicujus falsi assensus, Deus ut author naturæ nos falleret; ergo	2. If faith in us could be the principle of a false assent, God would be the cause of that falsity. The reason is, because God is no less the cause of faith than of the natural light; but if the

<i>Latin</i>	<i>English</i>
proportionaliter nos falleret ut author gratiæ, si fides infusa nos posset inducere ad assensum falsum.	natural light were the principle of some false assent, God as the author of nature would deceive us; therefore proportionally he would deceive us as the author of grace, if infused faith could lead us to a false assent.
Probatur 3. quia habitus non fertur iu aliquod objectum nisi quatenus substat & informatur ratione formali ipsius habitus: eo modo quo color videri non potest nisi per lucem; cum autem ratio formalis objecti fidei sit veritas prima revelans, nihil potest cadere sub fidem nisi quatenus substat veritati primæ, sub qua nullum falsum stare potest, non plus quam malum sub bono vel non ens sub ente.	It is proved 3. because a habit is not borne toward any object save inasmuch as that object stands under and is informed by the formal reason of the habit itself, in the manner in which colour cannot be seen except by light. But since the formal reason of the object of faith is the first truth revealing, nothing can fall under faith save inasmuch as it stands under the first truth, beneath which no falsehood can stand, any more than evil under good, or non-being under being.
Probatur 4. quia quidquid est fidei, est revelatum à prima veritate, adeoque certissimum & verissimum, à quo	It is proved 4. because whatever is of faith is revealed by the first truth,

<i>Latin</i>	<i>English</i>
proinde omnis falsitas debet abesse; nam alias prima veritas vel falleret vel falleretur, quod implicat contradictionem; nam eo ipso non esset prima veritas.	and therefore is most certain and most true, from which accordingly all falsity must be absent; for otherwise the first truth would either deceive or be deceived, which implies a contradiction; for by that very fact it would not be the first truth.
Dices, prudentiæ infusæ potest subesse falsum; ergo & fidei infusæ. Anteced. probatur, quia prudentia infusa dictat adorandam esse hostiam à Sacerdote elevatam sub missa, quam tamen aliquando contingit vel negligentia vel malitia Sacerdotis non esse consecratam, & consequenter non esse dignam adoratione; quo casu illa inclinabit ad falsum: similiter practice poterit judicare, licere viro copulari cum hac muliere, quæ tamen à parte rei non sit sua uxor.	You will say, falsehood can lie beneath infused prudence; therefore beneath infused faith also. The antecedent is proved, because infused prudence dictates that the host elevated by the priest at Mass is to be adored, which nevertheless it sometimes happens, either by the negligence or by the malice of the priest, has not been consecrated, and consequently is not worthy of adoration; in which case that prudence will incline to a falsehood. Similarly it will be able practically to judge that it is lawful for a man to be joined with this woman,

<i>Latin</i>	<i>English</i>
	who nevertheless on the side of the thing is not his wife.
Resp. neg. conseq. & ratio disparitatis est, quod prudentia sit virtus intellectualis practica, non verò speculativa; ad quam proinde non spectat judicare qualis sit res aliqua à parte rei, sed qualis secundùm rectam rationem appareat post factum diligens examen: & eapropter non est mirum quod versari possit nonnumquam circà objectum speculativè falsum, seu quod idem est, falli speculativè	I answer, denying the consequence; and the reason of the difference is that prudence is a practical intellectual virtue, not a speculative one; to which accordingly it does not belong to judge what some thing is on the side of the thing, but what it appears to be according to right reason after diligent examination has been made: and on that account it is no wonder that it can sometimes be occupied about an object speculatively false, or, what is the same, that it be deceived speculatively
circa suum objectum: quamvis numquam possit falli practicè. Unde licet judicium illud speculativum quo judico hanc hostiam esse consecratam, vel hanc fæminam esse meam uxorem, possit esse speculativè falsum: tamen judicium practicum quo prudenter judico me posse adorare hanc hostiam, aut quo judico me posse accedere ad hanc	about its object, although it can never be deceived practically. Whence, although that speculative judgment by which I judge this host to be consecrated, or this woman to be my wife, can be speculatively false, yet the practical judgment by

<i>Latin</i>	<i>English</i>
fæminam, numquam potest esse practicè falsum, sed semper est verum. Itaque prudentia perficit intellectum tantùm in ordine ad particularia conformiter ad rectam rationem: & idcirco dictamen ejus semper inclinatur ad practicè verum, etiamsi versetur circa aliquid quod est speculativè falsum.	which I prudently judge that I may adore this host, or by which I judge that I may approach this woman, can never be practically false, but is always true. And so prudence perfects the intellect only in the order to particulars conformably to right reason; and therefore its dictate always inclines to what is practically true, even if it be occupied about something which is speculatively false.
Porrò fides, est virtus intellectualis practica simul & speculativa, perficiens intellectum non tantùm quoad praxim, sed etiam quoad speculationem; adeoque debet excludere omne falsum tam speculativum quam practicum; proinde non est mirum quod illi nequidem speculativè possit subesse falsum, prout potest prudentiæ.	Further, faith is an intellectual virtue at once practical and speculative, perfecting the intellect not only as to practice but also as to speculation; and therefore it must exclude every falsehood, both speculative and practical. Accordingly it is no wonder that falsehood cannot lie beneath it even speculatively, as it can beneath prudence.
Dices, possunt Episcopi in aliqua Synodo convenire ad definiendam	You will say, bishops can come together in some synod

<i>Latin</i>	<i>English</i>
aliquam propositionem erroneam, prout accidit tempore S. Cypriani, quando Episcopi Africæ definierunt baptismum ab hæ- reticis collatum esse nullum; atqui tali casu habitus fidei populum movebit ad assentiendum huic doctrinæ à Synodo propositæ; ergo fides quoque potest inclinare ad falsum speculativè.	to define an erroneous proposition, as happened in the time of St Cyprian, when the bishops of Africa defined baptism conferred by he- retics to be null; but in such a case the habit of faith will move the people to assent to this doctrine proposed by the synod; therefore faith too can incline to what is speculatively false.
Resp. neg. subsump. etenim prudentia poterit tunc populo dictare credendum esse propositioni à Synodo definitæ: ad quod tamen non potest inclinare fides, quia, ut supponitur, falsum est quod proponitur; & quamvis populus se putet credere ex fide supernaturali, fallitur tamen, quia non credit nisi fide humanâ.	I answer, denying the premise subsumed. For prudence will then be able to dictate to the people that the proposition defined by the synod is to be believed; to which nevertheless faith cannot incline, because, as is supposed, what is proposed is false; and although the people think they believe by supernatural faith, they are nevertheless deceived, because they believe only by human faith.
Dices, quando fit syllogismus cujus prima præmissa est de fide & altera falsa, quæ tamen creditur fide humanâ	You will say, when a syllogism is made whose first premise is of faith and

<i>Latin</i>	<i>English</i>
vera (ut in hoc syllogismo, nullum concilium congregatum & legitimè confirmatum auctoritate Pontificis potest errare in definiendis rebus fidei; sed Concilium Basiliense est tale; ergo non potest errare in definiendis rebus fidei) tunc potest contingere conclusionem esse falsam; sed assensus conclusionis falsæ promanat tanquam effectus ab assensu præmissarum; quia assensus utriusque præmissæ est causa assensus conclusionis: & consequenter assensus præmissæ majoris de fide concurret ad assensum falsum conclusionis. Quod confirmatur quia opinio falsa potest inclinare ad assen-	the other false, which nevertheless is believed true by human faith (as in this syllogism: no council assembled and legitimately confirmed by the authority of the Pontiff can err in defining matters of faith; but the Council of Basel is such; therefore it cannot err in defining matters of faith), then it can happen that the conclusion is false; but the assent to the false conclusion issues as an effect from the assent to the premises, because the assent to each premise is the cause of the assent to the conclusion: and consequently the assent to the major premise, which is of faith, will concur to the false assent of the conclusion. Which is confirmed, because a false opinion can incline to a true as-
sum verum; ergo vice versâ opinio vera ad assensum falsum.	sent; therefore conversely a true opinion can incline to a false assent.

<i>Latin</i>	<i>English</i>
Resp. quamvis conclusio quantum ad sequelam referenda sit in utramque præmissam, tamen quod attinet ipsam falsitatem conclusionis eam referendam esse in solam minorem: siquidem major & minor simul sunt causa cur aliquid sequatur: quod autem sequatur falsum, id provenit à minore. Unde ad confirmationem neg. consequentiam; quia non est eadem ratio; non est enim inconveniens quod in bona argumentatione detur antecedens falsum consequente vero: quamvis impossibile sit in bona argumentatione dari antecedens verum consequente falso.	I answer that, although the conclusion as regards the sequence is to be referred to both premises, yet as concerns the falsity itself of the conclusion, this is to be referred to the minor alone: since the major and the minor together are the cause why something follows; but that what follows is false, this comes from the minor. Whence, to the confirmation, I deny the consequence, because the case is not the same; for it is not unfitting that in a good argumentation there be a false antecedent with a true consequent, although it is impossible that in a good argumentation there be a true antecedent with a false consequent.
Dices, fides infusa antiquorum Patrum inclinabat ad assensum hujus, Christus est nasciturus; sed Christo nato ille assensus erat falsus; ergo fides potest inclinare ad assensum falsum.	You will say, the infused faith of the ancient Fathers inclined to the assent of this: Christ is to be born; but once Christ was born that assent was false; therefore faith can incline to a false assent.

<i>Latin</i>	<i>English</i>
Resp. fidem antiquorum Patrum inclinasse ad credendam futuram Christi nativitatem, pro tempore, quo adhuc erat futura; sed quando meritò potuit dubitari an advenisset tempus partus Messiæ, tunc fides non inclinabat ad Christi nativitatem credendam ut futuram.	I answer that the faith of the ancient Fathers inclined them to believe the future nativity of Christ for the time in which it was still future; but when it could deservedly be doubted whether the time of the Messiah's birth had come, then faith did not incline them to believe the nativity of Christ as future.
Dices, habitus fidei potest inclinare ad assensum qui sit peccatum v. g. ad credendum ob vanam gloriam; quod est practicè falsum; ergo & ad falsum speculativè.	You will say, the habit of faith can incline to an assent which is a sin, for example to believing for the sake of vain-glory, which is practically false; therefore also to what is speculatively false.
Resp. neg. anteced. quia cum Spiritus Sanctus speciali auxilio supernaturali moveat voluntatem ad credendum, dicendus foret causare actum malum, & consequenter primariò in hoc actu peccare, quod est impossibile.	I answer, denying the antecedent; because, since the Holy Ghost by a special supernatural help moves the will to believe, he would have to be said to cause an evil act, and consequently to sin primarily in this act, which is impossible.

<i>Latin</i>	<i>English</i>
Dices, virtus justitiæ, Religionis, castitatis & similes possunt re ipsâ versari circâ aliquod objectum à parte rei injustum, irreligiosum, libidinosum &c. ergo & fides potest versari circâ objectum materialiter falsum.	You will say, the virtue of justice, of religion, of chastity, and the like can in very fact be occupied about some object which on the side of the thing is unjust, irreligious, lustful, etc.; therefore faith too can be occupied about an object materially false.
Resp. neg. conseq. & ratio disparitatis est, quod objectum materialiter malum possit formaliter esse bonum & honestum, quatenus nimirum illud præviâ sufficienti diligentîâ tale prudenter censetur; nam tunc induit rationem honesti, in quod virtus tunc per se tendit; siquidem illud dictamen prudentiæ applicatum isti objecto est veluti ultima ratio & forma honestatis: objectum verò materialiter falsum, non potest formaliter esse verum; eo quod veritas & falsitas desumantur per convenientiam vel disconvenientiam cum re ipsa: malitia verò desumitur ab objecto non prout est à parte rei, sed prout ab intellectu prudenter voluntati repræsentatur: &	I answer, denying the consequence; and the reason of the difference is that an object materially evil can be formally good and honest, inasmuch namely as, upon previous sufficient diligence, it is prudently judged to be such; for then it puts on the character of the honest, toward which the virtue then of itself tends; since that dictate of prudence applied to this object is as it were the ultimate reason and form of honesty. But an object materially false cannot be formally true, for the reason that truth and falsity are taken from agreement or

<i>Latin</i>	<i>English</i>
	disagreement with the thing itself; whereas malice is taken from the object not as it is on the side of the thing, but as it is prudently represented by the intellect to the will: and
ita adorans hostiam non consecratam, quam bonâ fide putat esse consecratam, formaliter elicit actum religionis: prout & dans elēmosinam alicui pauperi tali putato, actum misericordiæ.	thus one who adores a host that is not consecrated, but which in good faith he thinks to be consecrated, formally elicits an act of religion, as also one who gives alms to some poor man thought to be such elicits an act of mercy.
Dices, motiva quibus idiotæ & simplices fideles, item pueri quando ad usum rationis pervenerunt, aut etiam aliquando infideles inducuntur, ut judicent res fidei credibiles tanquam divinitus revelatas, non videntur semper tam solida, quin possint similia accommodari propositioni falsæ; ut patet, quando idiotis illis aliquid à Pastoribus proponitur tanquam divinitus revelatum & miraculis confirmatum: tunc enim ex tali propositione solent illi judicare sic esse credendum: & tamen contingere potest qnod Parentes aut Pastores proponant illis aliqua tanquam fidei, quæ	You will say, the motives by which the unlearned and simple faithful, likewise children when they have come to the use of reason, or even sometimes infidels, are led to judge the things of faith credible as divinely revealed, do not seem always so solid but that like motives could be accommodated to a false proposition; as is plain when something is proposed to those unlearned persons by their pastors as divinely

<i>Latin</i>	<i>English</i>
tamen à parte rei non sunt fidei: sic quoque infideles leguntur quandoque conversi ex inspectione constantiæ Sanctorum Martyrum in tormentis; & tamen multi hæretici animas decipientes talia quoque tormenta cum simili constantia perpessi sunt; ergo admittendum est quod propositioni fidei possit subesse falsum; quia alioquin illi simpliciores non prudenter judicarent mysteria fidei esse credibilia, nec ipsorum credere esset actus fidei infusæ, quod esset passim condemnare omnes rudiores & idiotas, quasi numquam elicerent actum veræ fidei: quod si verò admittatur ejusmodi propositioni credendorum posse subesse falsum, tunc consequenter videbitur admittendus habitus fidei, qui inclinet in objectum falsum; eo quod virtus inclinet in objectum quod prudenter judicatur objectum ejus.	revealed and confirmed by miracles: for then from such a proposal they are wont to judge that it is so to be believed; and yet it can happen that parents or pastors propose to them some things as of faith which nevertheless on the side of the thing are not of faith. So too infidels are read to have been sometimes converted by the sight of the constancy of the holy martyrs in torments; and yet many heretics, deceiving souls, have endured such torments too with a like constancy. Therefore it must be admitted that falsehood can lie beneath a proposition of faith; because otherwise those simpler folk would not prudently judge the mysteries of faith to be credible, nor would their believing be an act of infused faith, which would be everywhere to condemn all the ruder and unlearned

<i>Latin</i>	<i>English</i>
	sort, as though they never elicited an act of true faith. But if it be admitted that falsehood can lie beneath a proposal of things to be believed of that kind, then consequently there will seem to be admitted a habit of faith which inclines toward a false object, for the reason that a virtue inclines toward the object which is prudently judged to be its object.
Resp., & dico primò propositionem aliquam quæ proponitur tanquam credenda de fide ab universali Ecclesia, eam sic debere teneri; ita ut impossibile sit falsum aut erroneum esse, quod tantis signis & argumentis est confirmatum: verissimè enim scribit Richardus à S. Victore lib. 1. de Trinit. cap. 2. dum sic ait, „ sanè „, quæ revelata nobis sunt cælitus „, tam magnis tam miris prodigiis „, sunt confirmata, ut genus videatur esse dementiae in his vel ali- „, quantulum dubitare: „, & paulò post rursum ait, „, nonne cum „, omni confidentiâ dicere poterimus, Domine, si error est, à te „, decepti sumus: ista enim sunt „, nobis tantis signis & prodigiis „,	I answer, and I say first that a proposition which is proposed by the universal Church as to be believed of faith must be so held, so that it is impossible that what is confirmed by so many signs and arguments should be false or erroneous: for most truly does Richard of St Victor write, <i>lib. 1. de Trinit. cap. 2.</i>, when he says thus: „, truly „, the things which have been revealed to us from heaven „, are confirmed by prodigies so great and so wonderful „, that it seems to

<i>Latin</i>	<i>English</i>
confirmata, quæ non nisi per te „ fieri potuerunt.	be a kind „ of madness to doubt of them even „, a little: „, and a little after he says again: „, shall we not with „, all confidence be able to say, Lord, if it is an error, by thee „, have we been deceived: for these things have been „, confirmed to us by such great signs and prodigies „, as could not have been wrought but by thee.
Porrò pro responsione in forma ad objectionem hanc satis difficilem observandum est propositionem, quâ, veritates fidei propo-	Further, for the answer in form to this sufficiently difficult objection, it is to be observed that the proposal by which the truths of faith are pro-
nuntur tanquam credibiles à Deo revelatæ, constare motivis partim externis, quæ nimirum ex naturali ratione, aut ex factis naturam excedentibus petuntur: partim motivis internis, ut est habituale lumen fidei, aut quædam mentis interna actualis illustratio, prout docet S. Tho. 2. 2. quæst. 2. art. 9. ad tertium, ubi sic ait „, ille qui „, credit habet sufficiens inducti- „, vum ad credendum; inducitur „, enim autoritate divinæ	posed as credible, being revealed by God, consists of motives partly external, which namely are drawn from natural reason or from deeds exceeding nature, and partly of internal motives, such as is the habitual light of faith, or a certain internal actual illumination of the mind, as St Thomas teaches, 2. 2. quæst. 2. art. 9. ad

<i>Latin</i>	<i>English</i>
doctri- ,, næ miraculis confirmatæ: & ,, quod plus est, interiori instinctu ,, Dei invitantis.	<i>tertium</i> , where he speaks thus: ,, he who ,, believes has a sufficient induce- ,, ment to believing; for he is led ,, by the authority of divine doctri- ,, ne confirmed by miracles; and, ,, what is more, by the interior instinct ,, of God inviting him.
Dico, 2. quamvis, attendendo sola externa motiva quibus contingit multos induci ad credendum mysteria fidei tanquam à Deo revelata, dici possit quod illa in se nude spectata non videantur tam firma quin similia concurrere & adhiberi possint ad persuadendum aliquod falsum tanquam credibile: negamus tamen quod absolutè loquendo & consideratis omnibus motivis, tam internis, quam externis quæ concurrunt ad propositionem fidei, & ad formandum judicium de ejus credibilitate, contingere queat illis posse subesse falsum; quod declaratur, quia cum illis externis motivis, propositionibus & argumentis credibilitatis fidei, v. g. quæ desumuntur ex actu exteriori martyrii, quod martyr aliquis pro fide subit, aut per attestationem alicujus miraculi quod	I say 2. Although, attending only to the external motives by which it happens that many are led to believe the mysteries of faith as revealed by God, it can be said that those motives, regarded in themselves and nakedly, do not seem so firm but that like ones could concur and be employed to persuade some falsehood as credible, yet we deny that, absolutely speaking and all the motives being considered, both internal and external, which concur to the proposal of faith and to the forming of a judgment about its credibility, it can happen that

<i>Latin</i>	<i>English</i>
annuntians Evangelium operatur, aut per instructionem parentum aut Pastorum proponentium aliqua tanquam de fide: contingit simul concurrere in homine credente aliquod motivum intrinsecum quasi illuminans ejusmodi propositionem, argumentum, vel instructionem, quâ proponitur aliquod credibile, per quæ simul sumpta ille cognoscit hæc tanquam divinâ fide credibilia: quale motivum non habet alius eandem propositionem, argumentum, aut instructionem solo signo exteriori audiens & videns; sic S. Hier. in c. 9. Matthæi redarguens Julianum Augustum asserentem stultos fuisse illos qui statim secuti sunt Salvatorem respondet, quod „ fulgor ipse & majestas „ divinitatis occultæ, quæ etiam in „ humana specie Salvatoris relu- „ cebat, videntes solo trahere poterat aspectu „ : ita scilicet ut prudenter judicarent eum esse Messiam: non quidem quod solus externus intuitus ad hoc esset sufficiens, sed is simul cum interno numine <i>Spiritus Sancti</i>. Et ita possunt duo videre idem martyrium, ita ut unus mediante internâ illuminatione clarè cognoscat martyrem ex motivo veræ pietatis subire illa tormenta, quod	falsehood can lie beneath them. Which is explained thus: because along with those external motives, proposals, and arguments of the credibility of faith — for example those which are drawn from the exterior act of martyrdom which some martyr undergoes for the faith, or by the attestation of some miracle which one announcing the Gospel works, or by the instruction of parents or pastors proposing some things as of faith — it happens that there concurs at the same time in the believing man some intrinsic motive as it were illuminating a proposal, argument, or instruction of this kind, by which something credible is proposed, through which taken together he knows these things as credible by divine faith; which motive another man does not have who hears and sees the same

<i>Latin</i>	<i>English</i>
	proposal, argument, or instruction by the outward sign alone. Thus St Jerome, on chapter 9 of Matthew, refuting Julian the Emperor, who asserted that those men were fools who at once followed the Saviour, answers that „ the very splendour and majesty „ of the hidden divinity, which even in „ the human appearance of the Saviour shone „ forth, could draw those who saw him by „ the mere sight „ : so namely that they prudently judged him to be the Messiah: not indeed that the external sight alone was sufficient for this, but that sight together with the internal divine influence of <i>the Holy Ghost</i>. And so two men can see the same martyrdom, in such wise that one, by means of an internal illumination, clearly knows that the martyr undergoes those torments from the motive of true piety, which

<i>Latin</i>	<i>English</i>
alter interno illo lumine destitutus in illo non cognoscit: & eapropter unus illo intuitu externo martyrii tanquam motivo externo, juncto lumine interno prudenter judicat fidem Christianam esse amplexandam; alter verò hoc lumine destitutus, solo innixus motivo externo non sic prudenter movebitur.	the other, destitute of that internal light, does not know in him: and on that account the one, by that external sight of the martyrdom as an external motive, joined with the internal light, prudently judges that the Christian faith is to be embraced; but the other, destitute of this light, resting on the external motive alone, will not be so prudently moved.
Ex quo patet simpliciores Christianos non esse passim condemnandos tanquam qui veros actus fidei non exerceant; neque infideles illos esse statim arguendos imprudentiæ, quia aliquando leguntur publicè conversi ad aliquas occasiones externas visas, vel auditas, quæ in se nude spectatæ non poterant sufficienter mysteria fidei facere credibilia: quia scilicet primi imbuti habitu fidei sunt congruenter dispositi ad apprehendenda ea quæ fidei subserviunt, & sic juvantur ut perfectius advertant credibilitatem eorum quæ proponuntur; siquidem ut ait S. Thomas hic art. 4. ad tertium, lumen fidei facit videre ea quæ creduntur sub communi ratione	From which it is plain that simpler Christians are not everywhere to be condemned as men who do not exercise true acts of faith; nor are those infidels to be at once accused of imprudence, because they are sometimes read to have been publicly converted upon certain external occasions seen or heard, which, regarded in themselves and nakedly, could not sufficiently make the mysteries of faith credible: because, namely, the former, imbued with the

<i>Latin</i>	<i>English</i>
credibilis; quod in infidelibus faciunt actuales internæ illustrationes.	habit of faith, are fittingly disposed for apprehending those things which serve faith, and are thus helped to advert more perfectly to the credibility of the things proposed; since, as St Thomas says here, <i>art. 4. ad tertium</i> , the light of faith makes a man see the things which are believed under the common notion of the credible; which in infidels is done by actual internal illuminations.
Ne tamen per hæc detur occasio socordiæ Pastoribus, quibus incumbit rudes instruere in fundamentis ut prudenter credant: sive etiam ipsis idiotis, qui obli- gantur ea sollicitè addiscere, dico, etsi passim communes Christiani non sint existimandi carere verâ fide in exercitio actuum fidei: verendum tamen esse ne in multis locis ob defectum rectæ instructionis & sufficientis informationis in motivis & fundamentis credibilitatis non sint dispositi, ut prudenter de veritatibus fidei amplectendis judicent, eoque	Yet lest by these things occasion of sloth be given to pastors, whose duty it is to instruct the rude in the fundamentals so that they may believe prudently, or even to the unlearned themselves, who are ob- liged carefully to learn them, I say that, although common Christians are not everywhere to be reckoned as lacking true faith in the exercise of acts of faith, yet it is to be feared that in many

<i>Latin</i>	<i>English</i>
nomine veros fidei actus non exerçant, & tandem à fide totaliter deficient.	places, through the defect of right instruction and of sufficient information in the motives and foundations of credibility, they are not so disposed as to judge prudently concerning the truths of faith to be embraced, and on that account do not exercise true acts of faith, and at length fall away from the faith altogether.
<i>[End of Dubium IX; DUBIUM. X. follows immediately.]</i>	<i>[End of Dubium IX; DUBIUM. X. follows immediately.]</i>
BLOCK D — Tractatus I, Quæstio II, Dubium V** ### <i>An Pontifex Romanus authoritatem res fidei definiendi & controversias terminandi habeat se solo, an verò tantum cum Concilio generali, aut cætu Consiliariorum quos assumit.</i> PDF 79–83 = printed 59–63. Running heads verified: p. 59 <i>De Ecclesiâ</i> .; p. 60 <i>Tractatus Primus</i> ; p. 61 <i>De Ecclesiâ</i> .; p. 62 <i>Tractatus Primus</i> ; p. 63 <i>De Ecclesiâ</i> . (The Quæstio-II pages carry <i>De Ecclesiâ</i> . on rectos, not the <i>De fide Theologica</i> head of Quæstio I.)**	BLOCK D — Tractatus I, Quæstio II, Dubium V** ### <i>Whether the Roman Pontiff has the authority of defining matters of faith and of terminating controversies by himself alone, or only with a general Council, or with an assembly of counsellors whom he takes to himself.</i> PDF 79–83 = printed 59–63. Running heads verified: p. 59 <i>De Ecclesiâ</i> .; p. 60 <i>Tractatus</i>

<i>Latin</i>	<i>English</i>
	<i>Primus; p. 61 De Ecclesiâ.; p. 62 Tractatus Primus; p. 63 De Ecclesiâ. (The Quæstio-II pages carry De Ecclesiâ. on rectos, not the De fide Theologica head of Quæstio I.)**</i>
[...] (col. a of p. 59 carries the close of the preceding dubium, on the primacy of the Roman See, and ends “...& consequenter alius Episcopus quam Romanus in primatu eligi.” — with the marginal rubric)	[...] (col. a of p. 59 carries the close of the preceding dubium, on the primacy of the Roman See, and ends “... and consequently that another bishop than the Roman be chosen in the primacy.” — with the marginal rubric)
DUBIUM V.	DUBIUM V.
<i>An Pontifex Romanus auctoritatem res fidei definiendi & controversias terminandi habeat se solo, an verò tantum cum Concilio generali, aut cætu Consiliariorum quos assumit.</i>	<i>Whether the Roman Pontiff has the authority of defining matters of faith and of terminating controversies by himself alone, or only with a general Council, or with an assembly of counsellors whom he takes to himself.</i>
PRænotandum nos hic agere & in antecedentibus egisse de Pontifice, non ut est privata persona, nam ut sic non implicat ipsum docere errores, sicut illos	It is to be noted beforehand that here, and in what has gone before, we are treating of the Pontiff not as he is a

<i>Latin</i>	<i>English</i>
docere possunt privati Doctores: sed de illo nos agere, quatenus est universalis Ecclesiæ Pastor ex Cathedra docens.	private person — for as such it implies no contradiction that he teach errors, as private doctors can teach them — but that we are treating of him inasmuch as he is the universal Pastor of the Church teaching <i>ex Cathedra</i> .
Porrò quamvis certum sit apud Catholicos contra hæreticos summum Pontificem tanquam universalis Ecclesiæ Pastorem ex Cathedra loquentem in definiendis rebus fidei errare non posse: gravis tamen est inter ipsos Catholicos disceptatio in explicando quid sit Pontificem loqui ex Cathedra, & an auctoritatem res fidei definiendi Pontifex habeat per se solus, an verò tantum, cuándo præest Concilio generali, aut an quoties extra Concilium generale ut Pastor universalis aliquid tanquam de fide credendum proponit & obligat omnes fideles ad sic credendum.	Further, although it is certain among Catholics against heretics that the Supreme Pontiff, as universal Pastor of the Church speaking <i>ex Cathedra</i>, cannot err in defining matters of faith, yet there is a grave dispute among Catholics themselves in explaining what it is for the Pontiff to speak <i>ex Cathedra</i>, and whether the Pontiff has the authority of defining matters of faith by himself alone, or only when he presides over a general Council, or whether as often as, outside a general Council, he proposes something as of faith to be believed as

<i>Latin</i>	<i>English</i>
	universal Pastor and obliges all the faithful so to believe.
Prima sententia est quorundam	The first opinion is that of certain
Doctorum Sorbonicorum inter quos Armacanus, Ochamus, Cameracensis, Almainus, Gerson &c. Item Adriani VI. Pontificis Maximi quæst. de confirmatione, Alphonsi de Castro lib. 5. adversus hæreses cap. 2. qui ajunt Pontificem, etiam ut universalis Ecclesiæ Pastorem, absque Concilio generali in materia fidei aliquid definientem posse errare; secus verò si cum Concilio generali id faciat.	Doctors of the Sorbonne, among whom Armachanus, Ockham, the Cardinal of Cambrai, Almain, Gerson, etc.; likewise of Adrian VI, Supreme Pontiff, <i>quæst. de confirmatione</i>, of Alphonsus de Castro, <i>lib. 5. adversus hæreses cap. 2.</i>, who say that the Pontiff, even as universal Pastor of the Church, defining something in a matter of faith without a general Council, can err; but otherwise if he does it with a general Council.
Porrò nititur hæc sententia hisce rationibus: primò quia alioqui frustra congregarentur Concilia generalia, quæ tamen in Ecclesia Dei semper fuerunt judicata necessaria ad stabilienda fidei dogmata & hæreses condemnandas.	Further, this opinion rests upon these reasons: first, because otherwise general Councils would be assembled in vain, which nevertheless have always been judged necessary in the Church of God for establishing the dogmas of

<i>Latin</i>	<i>English</i>
	faith and condemning heresies.
2. Quia infallibilis assistentia Spiritus Sancti solum datur Pontifici dum procedit more humano, consulendo nimirum Doctores aliosque viros prudentes & Sanctos, super veritate definiendâ: illa verò veritatis discussio fieri debet in Concilio generali, ad quod præcipui Ecclesiæ Doctores conveniunt.	2. Because the infallible assistance of the Holy Ghost is given to the Pontiff only while he proceeds in a human manner, namely by consulting doctors and other prudent and holy men upon the truth to be defined: but that discussion of the truth must take place in a general Council, to which the chief Doctors of the Church come together.
Secunda sententia asserit Pontificem etiam extra Concilium generale aliquid in Materia fidei definientem tanquam universalis Ecclesiæ Pastorem quantumvis se solo, errare non posse. Porrò hæc sententia nititur hisce rationibus. Primò quia summus Pontifex cum sit successor S. Petri habet eandem in rebus fidei definiendis autoritatem, quam habuit S. Petrus: sed ille habuit illam independenter à Concilio generali: ergo & illam habet Romanus Pontifex tanquam Petri successor independenter à Concilio generali; eo quod autoritas illa non sit data Petro ut privatæ personæ,	The second opinion asserts that the Pontiff, even outside a general Council, defining something in a matter of faith as universal Pastor of the Church, however much by himself alone, cannot err. Further, this opinion rests upon these reasons. First, because the Supreme Pontiff, since he is the successor of St Peter, has the same authority in defining matters of faith which St Peter had; but he had it independently

<i>Latin</i>	<i>English</i>
sed ut publico universalis Ecclesiæ Pastori in bonum & utilitatem Ecclesiæ, adeoque ut continuanda in suis successoribus: & idcirco Lucae 22. dixit illi Christus <i>ego rogavi pro te ut non deficiat fides tua & tu aliquando conversus confirma fratres tuos.</i> Et Joan. 21. <i>pasce oves meas:</i> nam cum oves Christi essent usque ad consummationem sæculi futuræ, debuit ipse quoque ovili suo continuatâ successione Pastores temporaneos substituere; & consequenter id quod Christus in institutione hujus Pastoratus primo Pastori contulit, id cuilibet suo successori intelligitur contulisse.	of a general Council; therefore the Roman Pontiff too has it, as Peter's successor, independently of a general Council; for the reason that that authority was not given to Peter as to a private person, but as to the public Pastor of the universal Church for the good and profit of the Church, and therefore as to be continued in his successors. And on that account Christ said to him, Luke 22, <i>I have prayed for thee, that thy faith fail not: and thou, being once converted, confirm thy brethren.</i> And John 21, <i>Feed my sheep:</i> for since the sheep of Christ were to be until the consummation of the world, he himself also had to substitute for his fold, by a continued succession, temporal pastors; and consequently that which Christ conferred upon the first Pastor in the institution of this pastorate, he is

<i>Latin</i>	<i>English</i>
	understood to have conferred upon each of his successors.
Secundò, Ecclesiastica consuetudo hoc manifestè declarat, quia nunquam admissa est appellatio in causis fidei à Sede Romanâ ad Concilium generale, sed quicumque ab ea sunt condemnati hæretici, tales quoque ab universali Ecclesia sunt judicati; & certe si Ro-	Secondly, ecclesiastical custom manifestly declares this, because an appeal in causes of faith from the Roman See to a general Council has never been admitted, but whoever have been condemned by it as heretics have also been judged such by the universal Church; and certainly if the
manæ Sedis iudicium fallax foret, Concilii verò verax, nunquam liceret appellationem à Pontifice ad Concilium generale denegare; cujusmodi tamen appellationes, præsertim in Ecclesiasticis dogmatibus, Ecclesia nescit.	judgment of the Roman See were fallible, but that of a Council truthful, it would never be lawful to deny an appeal from the Pontiff to a general Council; yet appeals of that kind, especially in ecclesiastical dogmas, the Church knows not.
3 Si ad singulos Hæreticos condemnandos & Hæreses refutandas opus esset Concilium generale, cum illud frequenter non tantum esset valdè difficile sed persæpe impossibile: liceret Hæreticos interea impune vivere donec Concilium generale congregaretur.	3 If for condemning individual heretics and refuting heresies a general Council were needed, since that would frequently be not only very difficult but very often impossible, it would be

<i>Latin</i>	<i>English</i>
	lawful for heretics meanwhile to live with impunity until a general Council should be assembled.
Præterea si inter patres Concilii generalis aliqua controversia oriatur super intellectu alicujus Scripturæ, aut aliqua alia fidei controversia, ad hanc litem dirimendam non potest assumi alius judex quam Romanus Episcopus.	Besides, if among the fathers of a general Council some controversy should arise upon the sense of some Scripture, or some other controversy of faith, no other judge can be taken to settle this dispute than the Roman Bishop.
Tertia sententia asserit Pontificem etiam ut universalis Ecclesiæ Pastorem aliquid circa fidem definientem errare posse si se solo id faciat: adeoque necesse habere priusquam in materia fidei aliquid definiat assumere congregationem virorum Doctorum & piorum qui rem prius accurate examinent, & discutiant utriusque Patris argumenta, & hoc ideo quia Christus promisit assistentiam Pontifici dum serio & prudenter procedit more humano: & ita Apostolis in synodo Jerosolomi- tanâ congregatis Acto. 15. non statim revelatum est quid esset in causâ fidei decernendum, sed facta prius, ut Lucas ait, est magna inquisitio,	The third opinion asserts that the Pontiff, even as universal Pastor of the Church defining something concerning faith, can err if he does it by himself alone; and therefore that it is necessary, before he defines anything in a matter of faith, that he take to himself a congregation of learned and pious men who may first accurately examine the matter and discuss the arguments of either Father; and this because Christ

<i>Latin</i>	<i>English</i>
dein Petrus dixit ad eos &c. Quam diligentiam ubi adhibuit Pontifex, tunc datur illi ea assistentia quâ in fide errare non poterit, & sine qua Spiritus Sanctus ei definienti non assistet. Quod tamen non ita venit intelligendum quasi hæc infallibilitas resideat in cætu virorum Doctorum quos assumit, sed quia ille prærequiritur tanquam conditio sine qua Spiritus Sanctus ei definienti infallibiliter non assistet.	promised his assistance to the Pontiff while he proceeds seriously and prudently in a human manner. And thus to the Apostles gathered in the synod of Jerusa- lem, <i>Acto. 15.</i>, it was not at once revealed what was to be decreed in the cause of faith, but there was first made, as Luke says, a great disputation, then Peter said to them, etc. And when the Pontiff has employed this diligence, then there is given to him that assistance by which he cannot err in faith, and without which the Holy Ghost will not assist him defining. Which nevertheless is not so to be understood as though this infallibility resided in the assembly of learned men whom he takes to himself, but because that assembly is preredquired as a condition without which the Holy Ghost will not infallibly assist him defining.

<i>Latin</i>	<i>English</i>
Et hæc tertia sententia videtur verior, quam amplectimur cum Can. lib. 5. cap 5. ubi ponit discrimen inter Authores librorum Canonicorum & summum Pontificem, item Concilium generale; nimirum quod Authores Librorum Canonicorum ex immediata Dei revelatione scripserunt Catholica dogmata, Pontifex vero & Concilium generale incedunt humanâ viâ & rationem sequuntur, & argumentando & discutiendo verum à falso discernunt: non enim, inquit, Canus existimandus est summus Pontifex habere facultatem quæ Prophetis, Apostolis & Evangelistis inerant ut proposita qualibet de fide quæstione protinus dignoscere possit	And this third opinion seems the truer, which we embrace with Cano, <i>lib. 5. cap 5.</i>, where he puts a difference between the authors of the canonical books and the Supreme Pontiff, and likewise a general Council: namely, that the authors of the canonical books wrote Catholic dogmas from the immediate revelation of God, but the Pontiff and a general Council proceed by a human way and follow reason, and by arguing and discussing discern the true from the false. For the Supreme Pontiff is not, says Cano, to be thought to have that faculty which was in the Prophets, Apostles, and Evangelists, that upon any question of faith being proposed he could forthwith discern
utra quæstionis pars vera sit vel falsa: sed adhibere prius Concilium necesse est, & expendere debet utriusque partis argumenta: tunc deindè sequitur	which part of the question is true or false; but it is necessary first to employ a council, and he must weigh

<i>Latin</i>	<i>English</i>
auxilium Dei quod Pontifex opus habet, ut in recta fide contineatur: ita Canus loco citato.	the arguments of either part: then thereafter follows the help of God which the Pontiff needs, that he may be kept in the right faith: so Cano in the place cited.
Ex quo patet Pontificis potestatem definiendi res fidei dependere à cætu & Concilio virorum Doctorum tanquam conditione sine qua, non tamen à Concilio generali prout vult prima sententia; nam si hæc dependeret à Concilio generali ita ut sine illo non posset Pontifex validè definire, certè plurima fidei dogmata modo revocarentur in dubium, eo quod plura illorum non in Conciliis generalibus, sed vel in Conciliis provincialibus aut nationalibus à Pontifice confirmatis, sint definita: sic enim supra vidimus hæresim Novatianorum negantium pænitentiam post Baptismum lapsis damnatam fuisse à Cornelio Papa anno 255. in Concil. Romano prout & eodem sæculo ę Stephano Papâ decisam controversiam diu in Africa tempore S. Cypriani agitatam an re baptizandi essent qui ab Hæreticis baptizati sunt: & hæreticos habitos omnes qui contrarium pertinaciter sentirent; præterea plurimæ	From which it is plain that the Pontiff's power of defining matters of faith depends upon an assembly and council of learned men as upon a condition without which not, yet not upon a general Council, as the first opinion would have it; for if this depended upon a general Council in such a way that without it the Pontiff could not validly define, certainly very many dogmas of faith would now be called into doubt, for the reason that many of them were defined not in general Councils, but either in provincial or in national Councils confirmed by the Pontiff: for thus we have seen above that the heresy of the Novatians, denying penance to those

<i>Latin</i>	<i>English</i>
hæreses à diversis Pontificibus sunt condemnatæ solâ præviâ congregatione virorum Doctorum, prout adhuc sæculo præcedenti fecit Leo X. qui sic condemnavit hæreses Lutheri.	who lapsed after Baptism, was condemned by Pope Cornelius in the year 255 in a Roman Council; as also that in the same century there was decided by Pope Stephen the controversy long agitated in Africa in the time of St Cyprian, whether those who had been baptized by heretics were to be rebaptized; and that all were held heretics who pertinaciously held the contrary. Besides, very many heresies have been condemned by divers Pontiffs upon the sole previous congregation of learned men, as Leo X did even in the preceding century, who thus condemned the heresies of Luther.
Et certè non est verosimile Christum hanc auctoritatem definiendi fidei controversias in Vicario restrinxisse ad Concilium generale, eo quod sæpè sit moraliter impossibile illud cogere in magnis persecutionibus, prout accidit in primis trecentis annis, in quibus post	And certainly it is not likely that Christ restricted this authority of defining controversies of faith in his Vicar to a general Council, for the reason that it is often morally impossible to

<i>Latin</i>	<i>English</i>
Concilium Apostolorum Jerosolymis celebratum, nullum aliud fuit congregatum: siquidem primum fuit Nicænum celebratum anno post Christum natum 327. Ex alia vero parte sæpè urget gravissima necessitas, vel natam hæresim damnandi ne longius serpat, vel dubiam veritatem, ad salutem tamen necessariam, declarandi.	convoke one in great persecutions, as happened in the first three hundred years, in which, after the Council of the Apostles celebrated at Jerusalem, no other was assembled; since the first was that of Nicaea, celebrated in the year 327 after the birth of Christ. But on the other hand there is often a most grave necessity urging, either of condemning a heresy that has arisen lest it creep further, or of declaring a doubtful truth which is nevertheless necessary to salvation.
Præterea si Pontifex non haberet infallibilem auctoritatem definiendi res fidei, nisi in Concilio generali, teneretur ad eas definiendas sequi majorem partem suffragiorum, nam hoc supposito, ideo Concilium generale requireretur, ut Pontifex non temerè procederet inconsulta prius Ecclesia in Concilio generali congregata, quod ni faceret, temerè procederet qui majori parte suffragiorum relictâ, minorem sequeretur.	Besides, if the Pontiff had not the infallible authority of defining matters of faith save in a general Council, he would be bound in defining them to follow the greater part of the votes; for on this supposition a general Council would be required for this reason, that the Pontiff should not proceed rashly without first

<i>Latin</i>	<i>English</i>
	consulting the Church assembled in a general Council; and if he did not do this he would proceed rashly, who, leaving the greater part of the votes, should follow the lesser.
Ex quibus aliisque patet Pontificem etiam sine Concilio generali posse hanc infallibilem auctoritatem definiendi res fidei exercere præviâ congregatione virorum proborum (†word obliterated in manuscript ink) ad veritatem pro rerum gravitate ritè & legitimè discutiendum. Quando tamen Concilium generale potest cogi, planè expedit illud congregare; tum ad veritatem magis discutiendam & examinandam; tum ad majorem credibilitatis evidentiam in rebus ipsis definiendis causandam.	From these and other things it is plain that the Pontiff, even without a general Council, can exercise this infallible authority of defining matters of faith upon a previous congregation of upright (†word obliterated in manuscript ink) men for duly and legitimately discussing the truth according to the gravity of the matters. When, however, a general Council can be convoked, it is plainly expedient to assemble it, both for the fuller discussion and examination of the truth, and for causing a greater evidence of credibility in the very matters to be defined.
Etenim antequam Pontifex definiat rem aliquam fide divinâ credendam, habere	For indeed, before the Pontiff defines some thing as

<i>Latin</i>	<i>English</i>
debet evidentiam credibilitatis, quod res illa sit à Deo revelata: neque in ipsa definienda novam revelationem facit, sed factam declarat & declaratam fide divina credendam fidelibus proponit; neque enim fidem novam ipse adstruit aut cudit, sed antiquam solum declarat; Neque enim Pontifex, aut Ecclesia habet potestatem aliquid faciendi de fide, quod ante non erat de fide; quia non habet novas revelationes. Et illud est speciale privilegium Scripturæ Canonicae, quod sit quasi calamus scribæ velociter scribentis Spiritus Sancti illam immediate dictantis, non verò operante copioso discursu, per quem Pontifex & Ecclesia procedunt ad suas definitiones.	to be believed by divine faith, he must have the evidence of credibility that that thing is revealed by God; nor in defining it does he make a new revelation, but declares one already made, and proposes what has been declared to the faithful to be believed by divine faith; for he does not himself build up or forge a new faith, but only declares the ancient. For neither the Pontiff nor the Church has the power of making anything to be of faith which was not of faith before, because she has no new revelations. And that is the special privilege of canonical Scripture, that it is as it were <i>the pen of a scrivener that writeth swiftly</i>, the Holy Ghost dictating it immediately, and not working by that copious discourse by which the Pontiff and the Church proceed to their definitions.

<i>Latin</i>	<i>English</i>
Petes, ad quid serviant definitiones Pontificiæ, quandoquidem ad credendum sufficit revelatio divina sufficienter proposita per motiva credibilitatis.	You will ask, to what do pontifical definitions serve, since for believing there suffices a divine revelation sufficiently proposed through the motives of credibility.
Resp. id esse verum respectu credendorum, quæ explicitè & expressè proponuntur; non verò respectu eorum, quæ confusè solum, implicitè & mediâtè proponuntur credenda; ita ut dubium esse possit de vero sensu revelationis, ad quem necessaria est definitio Pontificia.	I answer that this is true in respect of the things to be believed which are explicitly and expressly proposed, but not in respect of those which are proposed to be believed only confusedly, implicitly, and mediately, so that there can be a doubt about the true sense of the revelation, for which a pontifical definition is necessary.
Petes, an ergo definitiones Pontificiæ in materia fidei non sint de fide.	You will ask, whether then pontifical definitions in a matter of faith are not of faith.
Resp. affirm. quamvis tamen non polleant eodem autoritatis gradu cum Sacra Scriptura & Apostolicis traditionibus; eo quod hæ innitantur immediâtè, divinæ revelationi; definitiones verò Pontificiæ solum	I answer: yes; although nevertheless they do not have the same degree of authority with Sacred Scripture and the Apostolic traditions, for the reason that

<i>Latin</i>	<i>English</i>
mediatè, quatenus nimirum per certam & evidentem consequentiam de revelatis, scilicet è Scriptura vel traditione educuntur. Ad hoc autem necesse est, ut conclusio à Pontifice definienda habeat à parte rei identitatem cum prius revelatis, ita scilicet ut habeat rationem unius conceptus cum illis; nam alioquin antiqua revelatio eam non posset attingere; adeoque nec posset infallibiliter declarare de fide.	these rest immediately upon divine revelation, but pontifical definitions only mediately, inasmuch namely as they are drawn by a certain and evident consequence from things revealed, that is, from Scripture or tradition. But for this it is necessary that the conclusion to be defined by the Pontiff have on the side of the thing an identity with the things previously revealed, so namely that it have the character of one concept with them; for otherwise the ancient revelation could not reach it, and therefore neither could it be infallibly declared to be of faith.
<i>[Block E follows immediately: the catchword at the foot of this column is* Petes*.]</i>	<i>[Block E follows immediately: the catchword at the foot of this column is* Petes*.]</i>
BLOCK E — Tractatus I, Quæstio II, Dubium V continued: the decrees of morals** ### From <i>Petes, an sicuti Romanus Pontifex ex Cathedra docens</i>	BLOCK E — Tractatus I, Quæstio II, Dubium V continued: the decrees of morals** ### From <i>You will</i>

<i>Latin</i>	<i>English</i>
<i>est infallibilis...</i> to the Leo X / <i>montes pietatis</i> paragraph PDF 83 (foot) – 85 (head) = printed 63 (foot) – 65 (head). In fact the passage opens with the catchword <i>Petes</i> at the foot of printed p. 63 and its first words stand at the head of col. a of printed p. 64; it ends at the foot of col. a of printed p. 65, immediately before DUBIUM VIJ. Running heads verified: p. 63 <i>De Ecclesiâ</i>.; p. 64 <i>Tractatus Primus</i>; p. 65 <i>De Ecclesiâ</i>.**	<i>ask, whether, just as the Roman Pontiff teaching ex Cathedra is infallible...</i> to the Leo X / <i>montes pietatis</i> paragraph PDF 83 (foot) – 85 (head) = printed 63 (foot) – 65 (head). In fact the passage opens with the catchword <i>Petes</i> at the foot of printed p. 63 and its first words stand at the head of col. a of printed p. 64; it ends at the foot of col. a of printed p. 65, immediately before DUBIUM VIJ. Running heads verified: p. 63 <i>De Ecclesiâ</i>.; p. 64 <i>Tractatus Primus</i>; p. 65 <i>De Ecclesiâ</i>.**
[...] (catchword at the foot of the column: <i>Petes</i>)	[...] (catchword at the foot of the column: <i>Petes</i>)
<i>Petes</i>; an sicuti Romanus Pontifex ex Cathedra docens est infallibilis in decidendis dubiis fidei quæstionibus, ita quoque sit infallibilis in decretis morum? Antequam respondeam prænotari oportet duplex distinguendum esse decretum morum, unum scilicet dependens ex facto & rebus gestis: alterum verò dependens ex jure spectante ad universalem Ecclesiam.	You will ask, whether, just as the Roman Pontiff teaching <i>ex Cathedra</i> is infallible in deciding doubtful questions of faith, so too he is infallible in the decrees of morals? Before I answer, it must be noted beforehand that a twofold decree of morals is to be distinguished:

<i>Latin</i>	<i>English</i>
Exempla prioris sunt verbi gratia, quod Petrus sit dignus tali præpositura ad quam commendatur; quod Joannes sit justè privatus suo Canonicatu; quod Paulus justè suum Canonicatum possideat. Exempla posterioris sunt hæc, verbi gratia, quod parvuli sint baptizandi; quod laici satisfaciunt communicando sub una solum specie; quod non sit committenda usura vel Simonia; quod Sanctorum cultus sit licitus, prout & reliquiarum &c.	one, namely, depending upon a fact and upon things done; the other depending upon a right pertaining to the universal Church. Examples of the former are, for instance, that Peter is worthy of such a benefice to which he is recommended; that John is justly deprived of his canonry; that Paul justly possesses his canonry. Examples of the latter are these, for instance: that little ones are to be baptized; that the laity satisfy by communicating under one species only; that usury or simony is not to be committed; that the cult of the saints is lawful, as also of relics, etc.
Quantum ad primi generis decretum, nempè dependens ex facto, conveniunt omnes, Pontificem in eo posse errare; eo quod illius respectu non habet infallibilem assistentiam Spiritus S: quippè qui illius respectu procedat ut merus Princeps Ecclesiasticus innixus testimoniis humanis: quod non obscure	As to a decree of the first kind, namely one depending upon a fact, all agree that the Pontiff can err in it, for the reason that in respect of it he has not the infallible assistance of the Holy Ghost, since in respect of it he

<i>Latin</i>	<i>English</i>
declarat Innocentius III. in c. à nobis sæpe est quæsitum de sent: excommunicat. ubi ait, iudicium Dei veritatisque non fallit nec fallitur, semper innititur: iudicium autem Ecclesiæ nonnumquam opinionem sequitur quam & fallere sæpè contingit & falli: propter quod contingit interdum, ut qui ligatus est apud Deum, apud Ecclesiam sit solutus, & qui liber est apud Deum, Ecclesiasticâ sit censurâ innodatus.	proceeds as a mere ecclesiastical prince resting upon human testimonies: which Innocent III not obscurely declares in c. à <i>nobis sæpe est quæsitum de sent: excommunicat.</i>, where he says that the judgment of God always rests upon truth, and neither deceives nor is deceived; but the judgment of the Church sometimes follows opinion, which it often happens both to deceive and to be deceived; on account of which it sometimes happens that he who is bound before God is loosed before the Church, and he who is free before God is bound by an ecclesiastical censure.
Quantùm ad decreta secundi generis, non potest errare Pontifex tradendo & docendo ex cathedra doctrinam morum toti Ecclesiæ ad salutem necessariam, saltem attendendo substantiam legis ac præcepti; quod addo; quia nihil vetat eum laborare aliquo prudentiæ defectu quoad aliquas circumstantias v. g.	As to decrees of the second kind, the Pontiff cannot err in delivering and teaching <i>ex cathedra</i> to the whole Church a doctrine of morals necessary to salvation, at least attending to the substance of the law and

<i>Latin</i>	<i>English</i>
aliquid inconvenienti tempore faciendo, aut nimis multas Religiones approbando &c. Nam si in ejusmodi Legibus ferendis possit errare quoad substantiam, posset quoque tota Ecclesia in negotio salutis errare; illud autem fieri est impossibile; cum juxta dictum Salvatoris portæ inferi non prævalebunt adversus eam. Assumptum probatur; quia tota Ecclesia obligatur ex præcepto Christi obedire summo Pontifici aliquid vetanti vel præcipienti ad salutem necessarium: itaque si Pontifex in hoc erraret, tota quoque Ecclesia sic erraret.	precept — which I add, because nothing hinders his labouring under some defect of prudence as to certain circumstances, for example by doing something at an inconvenient time, or by approving too many religious orders, etc. For if in enacting laws of this kind he could err as to the substance, the whole Church too could err in the business of salvation; but that this should happen is impossible, since according to the saying of the Saviour <i>the gates of hell shall not prevail against it.</i> The premise assumed is proved, because the whole Church is obliged by the precept of Christ to obey the Supreme Pontiff when he forbids or commands something necessary to salvation: and so, if the Pontiff were to err in this, the whole Church would likewise so err.

Præterea cum ejusmodi decreta mo-

<i>Latin</i>	<i>English</i>
	Besides, since decrees of mo-
rum sint decreta fidei in materia practica, si in ejusmodi Pontifex posset errare, sequeretur eum posse errare in duobus fidei quæstionibus definiendis; nam eadem Scriptura docet peccatum esse turpe adeoque vitandum; virtutem vero esse honestam adeoque amplexandam: si Pontifex ergo errando vitium præciperet, aut virtutem prohiberet, certe contra Scripturam doceret, adeoque committeret errorem in fide; insuper cum Pontifex sit supremus Ecclesiæ Pastor debet habere infallibilem potestatem salubriter pascendo oves Christi; alioquin enim Christus non bene providisset Ecclesiæ suæ: & certè ejus potestas esset valdè exigua si se non extenderet ad ejusmodi decreta morum.	rals of this kind are decrees of faith in practical matter, if the Pontiff could err in such, it would follow that he could err in defining two questions of faith; for the same Scripture teaches that sin is base and therefore to be avoided, but that virtue is honest and therefore to be embraced. If therefore the Pontiff, erring, were to command a vice or to forbid a virtue, certainly he would teach against Scripture, and so would commit an error in faith. Moreover, since the Pontiff is the supreme Pastor of the Church, he must have an infallible power for pasturing the sheep of Christ healthfully; for otherwise Christ would not have provided well for his Church: and certainly his power would be very slight if it did not extend to decrees of morals of this kind.

<i>Latin</i>	<i>English</i>
Petes, an Pontifex posset errare definiendo aliquem contractum esse justum vel injustum.	You will ask, whether the Pontiff could err in defining some contract to be just or unjust.
Resp. neg. ut probari potest ex jam dictis: probari etiam potest ex decreto Leonis X. qui definivit sacro approbante Concilio Lateranensi contractum, quem faciunt montes pietatis, esse justum & licitum, eumque à suis Præcessoribus Paulo II. Sixto IV. Innocentio VIII. Alexandro VI. & Julio II. laudabiliter esse approbatum, prout constat ex ejus bulla desuper lata.	I answer: no, as can be proved from what has already been said; it can also be proved from the decree of Leo X, who defined, with the approbation of the sacred Lateran Council, that the contract which the <i>montes pietatis</i> make is just and lawful, and that it had been laudably approved by his predecessors Paul II, Sixtus IV, Innocent VIII, Alexander VI, and Julius II, as is established from his bull issued thereupon.
<i>[End of the discussion of the decrees of morals; DUBIUM VIJ. follows immediately in col. b of the same page.]</i>	<i>[End of the discussion of the decrees of morals; DUBIUM VIJ. follows immediately in col. b of the same page.]</i>
BLOCK F — Tractatus I, Quæstio II, Dubium VII** ### <i>An possit Pontifex errare in Canonizatione item in Beatificatione Sanctorum. PDF 85–86 = printed 65–66. (The commission gave</i>	BLOCK F — Tractatus I, Quæstio II, Dubium VII** ### <i>Whether the Pontiff can err in the Canonization, and likewise in the Beatification,</i>

<i>Latin</i>	<i>English</i>
PDF 85–87 = printed 65–67; but the dubium ends at the foot of col. b of printed p. 66, with the catchword Dub. 8. DUBIUM VIII begins at the head of col. a of printed p. 67 — see sic-note F-1.) Running heads verified: p. 65 <i>De Ecclesiâ</i>.; p. 66 <i>Tractatus Primus</i>.**	of Saints. PDF 85–86 = printed 65–66. (The commission gave PDF 85–87 = printed 65–67; but the dubium ends at the foot of col. b of printed p. 66, with the catchword Dub. 8. DUBIUM VIII begins at the head of col. a of printed p. 67 — see sic-note F-1.) Running heads verified: p. 65 <i>De Ecclesiâ</i>.; p. 66 <i>Tractatus Primus</i>.**
DUBIUM VIJ.	DUBIUM VIJ.
<i>An possit Pontifex errare in Canonizatione item in Beatificatione Sanctorum.</i>	<i>Whether the Pontiff can err in the Canonization, and likewise in the Beatification, of Saints.</i>
PRæmitto Canonisationem Sanctorum non esse aliud quam publicum Ecclesiæ testimonium de vera sanctitate & gloriâ alicujus hominis jam defuncti. Beatificationem vero non esse aliud quam concessionem Pontificis factam alicui Religioni vel Provinciæ qua quispiam defunctus potest Beatus appellari eique duliæ cultus exhiberi. Differt ergo Canonizatio a Beatificatione quod Canonisatio fiat per modum	I premise that the canonization of saints is nothing else than a public testimony of the Church concerning the true sanctity and glory of some man already deceased. But beatification is nothing else than a concession made by the Pontiff to some religious order or province, by which

<i>Latin</i>	<i>English</i>
ultimæ & definitivæ sententiæ à Pontifice prolatae de sanctitate & gloriâ Canonisati toti Ecclesiæ proposita. Beatificatio vero non sic sed est quid præambulum ad Canonizationem.	one deceased may be called Blessed and the cult of dulia be exhibited to him. Canonization therefore differs from beatification in that canonization is done by way of a last and definitive sentence pronounced by the Pontiff concerning the sanctity and glory of the one canonized, proposed to the whole Church; but beatification is not so, but is something preambulatory to canonization.
Porrò primus qui solemnî ritu fuit ab Ecclesia Canonizatus teste Cardinali Bellarmino lib. de Sanctorum Beatitudine cap. 8. fuit S. Suitberdus, canonizatus à Leone III. ad instantiam & preces Caroli magni Imperatoris ut testatur Baronius 804.	Further, the first who was canonized by the Church with solemn rite, on the testimony of Cardinal Bellarmino, <i>lib. de Sanctorum Beatitudine cap. 8.</i>, was St Suitbert, canonized by Leo III at the instance and prayers of Charlemagne the Emperor, as Baronius testifies at the year 804.
Quibus præmissis dico primo Pontificem errare non posse neque in Canonizatione	These things being premised, I say first that the Pontiff can err neither in the

<i>Latin</i>	<i>English</i>
neque in Beatificatione Sanctorum. Ratio	canonization nor in the beatification of saints. The reason
est quia ille errare non potest in decretis morum ut supra diximus obligantibus universam Ecclesiam quale est hoc decretum: si enim posset Pontifex in ferendo tali decreto errare, posset tota Ecclesia errare, quod est contra promissionem Christi Ecclesiæ factam Joan. 16. <i>cum venerit ille spiritus veritatis docebit vos omnem veritatem:</i> quod ulterius probatur, nam per decretum Canonizationis proponit Pontifex ejusmodi sanctum celebrandum & colendum ab omnibus fidelibus, quos obligat ad illum recognoscendum tanquam de facto cum Christo regnantem in cælis: qui proinde Pontifici in hac parte obligantur obedire; ex quo manifestè sequitur quod si Pontifex erret proponendo fidelibus aliquem tanquam sanctum qui tamen talis non est, quod quoque errabit tota Ecclesia illum colendo pro sancto qui talis non est.	is that he cannot err in decrees of morals, as we said above, obliging the universal Church, of which sort this decree is: for if the Pontiff could err in enacting such a decree, the whole Church could err, which is against the promise of Christ made to the Church, John 16: <i>when he, the Spirit of truth, is come, he will teach you all truth:</i> which is further proved, for by the decree of canonization the Pontiff proposes such a saint to be celebrated and venerated by all the faithful, whom he obliges to acknowledge him as in fact reigning with Christ in heaven; who accordingly are obliged to obey the Pontiff in this part. From which it manifestly follows that, if the Pontiff should err in proposing to the faithful as a saint one

<i>Latin</i>	<i>English</i>
	who nevertheless is not such, the whole Church too will err in venerating as a saint one who is not such.
Petes, an sit de fide aliquem beatificatum esse in cælis.	You will ask, whether it is of faith that someone beatified is in heaven.
Resp. negat. nam si hoc esset certum Pontifex non procederet ulterius, majorem diligentiam & majus examen adhibendo super sanctitate canonizandi: nam quod est de fide certum non eget ulteriori certitudine: sed Pontifex ad Canonizationem procedens, non est contentus priori examine facto in Beatificatione, sed insuper novum instituit idque non solum pro formâ & ad externam pompam, sed ad majorem certitudinem de sanctitate Canonizandi habendam: & hinc S. Thom. quodlib. 9. art. ulti. rectè ait piè credendum esse quod in Canonizatione Sanctorum judicium Ecclesiæ errare non possit.	I answer: no. For if this were certain, the Pontiff would not proceed further, employing greater diligence and a greater examination upon the sanctity of the one to be canonized; for what is certain of faith needs no further certitude. But the Pontiff, proceeding to canonization, is not content with the prior examination made in the beatification, but more-over institutes a new one, and that not only for form's sake and for external pomp, but for the having of a greater certitude concerning the sanctity of the one to be canonized. And hence St Thomas, <i>quodlib. 9. art. ulti.</i> , rightly says that it is piously to be believed that in the

<i>Latin</i>	<i>English</i>
	canonization of saints the judgment of the Church cannot err.
Dices, Pontifex in Canonizatione sanctorum utitur testimonio humano quod est fallibile, & per consequens non est in ejusmodi actu infallibilis.	You will say, the Pontiff in the canonization of saints uses human testimony, which is fallible, and consequently he is not infallible in an act of that kind.
Resp. admisso antec. negando conseq. quia non utitur testimonio humano tanquam motivo credendi sed solum ut medio quodam per quod inquit, & facta inquisitione illi constat de vera sanctitate mortui: factâ autem illâ inquisitione & habitis certis signis de sanctitate Canonizandi, cum attestatio Pontificis sit testimonium publicum pro tota Ecclesia, providentia Dei tenetur illi assistere, ne, si illud sit falsum, tota Ecclesia erret. Et ita quoque in definiendo quod hæc vel illa sit Scriptura Canonica, vel traditio Apostolica, Pontifex utitur testimonio humano tanquam conditione explicante; ex quo tamen minimè sequitur eum falli posse in declaranda aliqua Scripturâ vel traditione Apostolicâ.	I answer, admitting the antecedent, denying the consequent: because he does not use human testimony as a motive of believing, but only as a certain means through which he inquires; and the inquiry being made, the true sanctity of the dead man is established for him. But when that inquiry has been made and certain signs of the sanctity of the one to be canonized have been had, since the Pontiff's attestation is a public testimony for the whole Church, the providence of God is bound to assist him, lest, if it were false, the whole Church should err.

<i>Latin</i>	<i>English</i>
	And so likewise in defining that this or that is canonical Scripture, or an apostolic tradition, the Pontiff uses human testimony as an explaining condition; from which nevertheless it by no means follows that he can be deceived in declaring some Scripture or apostolic tradition.
<i>[End of Dubium VII; the catchword at the foot of the column is* Dub. 8.*, and DUBIUM VIII opens the next page.]</i>	<i>[End of Dubium VII; the catchword at the foot of the column is* Dub. 8.*, and DUBIUM VIII opens the next page.]</i>
BLOCK G — Tractatus I, Quæstio II, Dubium VIII** — the central passage ### An sit de fide Innocentium XI Romanum Pontificem feliciter regnantem esse Petri verum successorem & Christi in terris Vicarium? PDF 87–89 = printed 67–69. Running heads verified: p. 67 <i>De Ecclesiâ</i> .; p. 68 <i>Tractatus Primus</i> ; p. 69 <i>De Ecclesiâ</i> . The dubium ends part-way down col. a of printed p. 69, immediately before DUBIUM IX.**	BLOCK G — Tractatus I, Quæstio II, Dubium VIII** — the central passage ### Whether it is of faith that Innocent XI, the happily reigning Roman Pontiff, is the true successor of Peter and the Vicar of Christ on earth? PDF 87–89 = printed 67–69. Running heads verified: p. 67 <i>De Ecclesiâ</i> .; p. 68 <i>Tractatus Primus</i> ; p. 69 <i>De Ecclesiâ</i> . The dubium ends part-way

<i>Latin</i>	<i>English</i>
	down col. a of printed p. 69, immediately before DUBIUM IX.**
DUBIUM VIII	DUBIUM VIII
<i>An sit de fide Innocentium XI Romanum Pontificem feliciter regnantem esse Petri verum successorem & Christi in terris Vicarium?</i>	Whether it is of faith that Innocent XI, the happily reigning Roman Pontiff, is the true successor of Peter and the Vicar of Christ on earth?
REsp. negat. sed id solum esse certum prudentiâ humanâ cui speculative potest subesse falsum prout rectè ait Cajetanus 2. 2. quæst. 1. art. 10. Ratio est: quia Canonica electio Pontificis Romani pendet à pluribus conditionibus, quas nec fide divinâ tenemur credere, nec omnes humanitus loquendo possumus cognoscere; ea propter in hoc syllogismo: omnis Pontifex legitimè electus est successor S. Petri, & Christi Vicarius; sed Innocentius XI. est Pontifex legitimè electus; ergo Innocentius XI. est Petri successor & Vicarius Christi: antecedens non est nobis fide certum, saltem quoad minorem; ergo nec consequens. Probatur consequentia cum enim jure divino requiratur, quod Pontifex sit Vir;	I answer: no. But that this is certain only by human prudence, beneath which falsehood can speculatively lie , as Cajetan rightly says, 2. 2. quæst. 1. art. 10. The reason is: because the canonical election of the Roman Pontiff depends upon several conditions, which we are neither bound to believe by divine faith, nor can we, humanly speaking, know them all; on that account, in this syllogism: every Pontiff legitimately elected is the successor of St Peter and the Vicar of Christ; but Innocent XI is a Pontiff legitimately

<i>Latin</i>	<i>English</i>
secundo Baptizatus; tertio legitimè ordinatus; quarto à legitimis electoribus legitimè electus: hæc omnia non possumus humanitus loquendo evidenter scire, multo minus credere; cum tamen ex illis pendeat legitima Pontificis electio. Hinc eo prorsus modo quo non est de fide quod hæc Sacra Hostia in individuo in remonstrantia exposita contineat verum Corpus Christi; eo quod, an sit ritè consecrata, pendet ex multis circumstantiis quæ certissimò, humanitus loquendo, sciri non possunt: ita neque est de fide quod hic individuus Pontifex Innocentius XI. sit verus Petri successor & Christi in terris Vicarius.	elected; therefore Innocent XI is the successor of Peter and the Vicar of Christ — the antecedent is not certain to us by faith, at least as to the minor; therefore neither is the consequent. The consequence is proved: for since by divine right it is required that the Pontiff be a man; secondly baptized; thirdly legitimately ordained; fourthly legitimately elected by legitimate electors — all these things we cannot, humanly speaking, evidently know, much less believe; while nevertheless upon them depends the legitimate election of the Pontiff. Hence, in precisely the manner in which it is not of faith that this Sacred Host in the individual, exposed in the monstrance, contains the true Body of Christ — for the reason that whether it has been rightly consecrated depends upon many

<i>Latin</i>	<i>English</i>
	circumstances which, humanly speaking, cannot be most certainly known — so neither is it of faith that this individual Pontiff Innocent XI is the true successor of Peter and the Vicar of Christ on earth.
Probatur 3. quia neque ex Scriptura, neque ex traditione nobis constare potest quod hæc singularis persona sit verus Petri successor.	It is proved 3. because neither from Scripture nor from tradition can it be established for us that this singular person is the true successor of Peter.
Probatur 4. quia qui negaret hunc individuum Romanum Pontificem esse Petri successorem, non esset hæreticus, modo non negaret Romanum Pontificem legitimè electum esse Petri successorem: ergo quod hic modernus Pontifex sit verus Petri successor non est de fide.	It is proved 4. because one who should deny that this individual Roman Pontiff is Peter's successor would not be a heretic, provided he did not deny that a Roman Pontiff legitimately elected is Peter's successor: therefore that this modern Pontiff is the true successor of Peter is not of faith.
Dices, si fide divinâ non sit certum hunc Pontificem esse verum Pontificem; ergo neque fide divinâ constabit hanc Scripturam Canonicam esse Scripturam;	You will say, if it is not certain by divine faith that this Pontiff is the true Pontiff, then neither will it

<i>Latin</i>	<i>English</i>
neque hanc traditionem esse veram. Nam quod hæc Scriptura sit Canonica & quod hæc traditio sit Apostolica pendet ex definitione & declaratione summi Pontificis?	be established by divine faith that this Scripture is canonical Scripture, nor that this tradition is a true one. For that this Scripture is canonical and that this tradition is apostolic depends upon the definition and declaration of the Supreme Pontiff?
Resp. neg. cons. siquidem bene consistunt quod res aliqua proposita sit fide certa, esto ipse proponens non sit certus fide divinâ sed solummodo fide humanâ: ita enim fide divinâ credimus mysteria religionis Christianæ esse vera & à Deo revelata, esto signa & motiva, quibus illa nobis proponuntur ut evidenter credibilia, non sint fide divinâ certa tanquam à Deo revelata; & consequenter illa non credamus fide divina sed solâ humanâ: ergo similiter possumus fide divinâ credere, quæ hic Pontifex nobis proponit tanquam fide divinâ credenda, etiamsi fide divinâ non credamus ipsum esse verum Pontificem, sed sola fide humana; neque enim verum est; prout ex dictis patet, ut res aliqua fide divina credatur necesse esse ut & ipse proponens fide divina credatur; cum	I answer, denying the consequent; since it is quite consistent that a thing proposed be certain by faith, even though the proposer himself be certain not by divine faith but only by human faith: for thus we believe by divine faith that the mysteries of the Christian religion are true and revealed by God, even though the signs and motives by which they are proposed to us as evidently credible are not certain by divine faith as revealed by God, and consequently we do not believe them by divine faith but by human faith alone.

<i>Latin</i>	<i>English</i>
non sit necesse ut ipsa propositio, quæ tantum applicat testimonia divina, sit ipsum testimonium Dei, sed sufficiat esse testimonium humanum, quod reddit evidenter credibile ipsum testimonium divinum.	Therefore in like manner we can believe by divine faith the things which this Pontiff proposes to us as to be believed by divine faith, even if we do not believe by divine faith that he is the true Pontiff, but only by human faith. For neither is it true, as is plain from what has been said, that for a thing to be believed by divine faith it is necessary that the proposer himself also be believed by divine faith; since it is not necessary that the proposal itself, which only applies the divine testimonies, be the very testimony of God, but it suffices that it be a human testimony, which renders the divine testimony itself evidently credible.
Dices, impossibile est quod quis obligetur ea, quæ hic Pontifex definit tanquam de fide certa, credere fide divinâ tanquam talia, nisi simul obligetur fide divinâ credere hunc numero Pontificem esse verum Pontificem. Resp. neg. antec. quia ut ante diximus ad	You will say, it is impossible that anyone be obliged to believe by divine faith, as such, the things which this Pontiff defines as certain <i>de fide</i>, unless he be at the same time obliged to believe by

<i>Latin</i>	<i>English</i>
hoc sufficit quod per evidentia signa credibilitatis credant fide humana hinc hominem habere infallibilem authoritatem à Deo definiendi res fidei: nam hoc ipso quo mihi est moraliter certum hunc hominem esse verum Pontificem, ego teneor credere quæ ipse tanquam de fide credenda proponit atque definit.	divine faith that this-in-number Pontiff is the true Pontiff. I answer, denying the antecedent: because, as we said before, for this it suffices that by evident signs of credibility they believe by human faith that this man has infallible authority from God of defining matters of faith; for by the very fact that it is morally certain to me that this man is the true Pontiff, I am bound to believe the things which he proposes and defines as to be believed <i>de fide</i>.
Dices, quandocumque aliqua propositio universalis est de fide tanquam immediate in se revelata à Deo, tunc quoque singulæ propositiones particulares sub illa universali contentæ censentur esse de fide; eo quod illæ particulares saltem confusè & implicite sub illa universali contineantur, in qua sic & creduntur: sed hæc propositio universalis est de fide; omnis Pontifex Romanus legitimè electus est successor Petri & Vicarius Christi; ergo quoque hæc est de fide: Innocentius XI. est	You will say, whenever some universal proposition is of faith as immediately revealed in itself by God, then the several particular propositions contained under that universal are likewise held to be of faith, for the reason that those particulars are contained, at least confusedly and implicitly, under that universal, in which they are thus also

<i>Latin</i>	<i>English</i>
successor Petri & Vicarius Christi: quod confirmatur; quia quotiescumque ex una propositione de fide & alia certa per evidentem consequentiam educitur conclusio, hæc quoque erit de fide.	believed. But this universal proposition is of faith: every Roman Pontiff legitimately elected is the successor of Peter and the Vicar of Christ; therefore this too is of faith: Innocent XI is the successor of Peter and the Vicar of Christ. Which is confirmed, because as often as from one proposition of faith and another certain one a conclusion is drawn by an evident consequence, this too will be of faith.
Resp. neg. assump: quia prout adhuc supra insinuavimus, hæc regula in multis fallit; nam etiamsi hæc universalis sit fide divinâ certa; omnis hostia ritè consecrata conti-	I answer, denying the premise assumed: because, as we have already intimated above, this rule fails in many cases ; for even if this universal be certain by divine faith — every host rightly consecrated con-
net Corpus Domini; non tamen est fide certum, quod hæc numero hostia contineat Corpus Domini: sicuti quoque etiamsi sit fide certum, quod omnis ritè baptizatus sit in gratia, non est tamen fide divinâ certum, quod Petrus baptizatus sit in gratia &c. Et hoc ideo:	tains the Body of the Lord — yet it is not certain by faith that this-in-number host contains the Body of the Lord: just as also, even if it be certain by faith that everyone rightly baptized is

<i>Latin</i>	<i>English</i>
quia cum ejusmodi, & similes conclusiones deducantur ex una præmissa de fide, & subsumpto solum moraliter certo; cui potest subesse falsum: & eapropter ante dicta regula tantum est vera, quando particularis continetur sub universali, ut individuum sub sua specie, vel ut species sub suo genere: & ita bene sequitur; de fide est omnem hominem peccasse in Adamo: ergo Petrus, Paulus, peccaverunt in Adamo. Itaque quod rursum ad confirmationem attinet conclusio aliquaeducta ex assumpto de fide & subsumpto moraliter tantum certo, quantumvis per necessariam consequentiam, non potest esse de fide; prout patet in exemplis citatis; adeoque solum erit conclusio Theologica.	in grace, yet it is not certain by divine faith that Peter who was baptized is in grace, etc. And this for the reason that, since conclusions of this and the like kind are deduced from one premise of faith and a premise subsumed which is only morally certain, beneath which falsehood can lie: and on that account the aforesaid rule is only true when the particular is contained under the universal as an individual under its species, or as a species under its genus. And thus it follows well: it is of faith that every man sinned in Adam; therefore Peter and Paul sinned in Adam. And so, as regards the confirmation again, a conclusion drawn from a premise of faith and a subsumed premise only morally certain, however necessary the consequence, cannot be of faith, as is plain in the examples cited;

<i>Latin</i>	<i>English</i>
	and therefore it will be only a theological conclusion.
<i>[End of Dubium VIII; DUBIUM IX. follows immediately in the same column.]</i>	<i>[End of Dubium VIII; DUBIUM IX. follows immediately in the same column.]</i>
BLOCK H — Tractatus I, Quæstio II, Dubium IX** ### <i>Quo jure Episcopus Romanus sit successor Petri & Vicarius Christi. PDF 89–91 = printed 69–71.</i> Running heads verified: p. 69 <i>De Ecclesiâ</i> .; p. 70 <i>Tractatus Primus</i> ; p. 71 <i>De Ecclesiâ</i> . The dubium ends part-way down col. a of printed p. 71, immediately before QUÆSIO III.**	BLOCK H — Tractatus I, Quæstio II, Dubium IX** ### <i>By what right the Bishop of Rome is the successor of Peter and the Vicar of Christ. PDF 89–91 = printed 69–71.</i> Running heads verified: p. 69 <i>De Ecclesiâ</i> .; p. 70 <i>Tractatus Primus</i> ; p. 71 <i>De Ecclesiâ</i> . The dubium ends part-way down col. a of printed p. 71, immediately before QUÆSIO III.**
DUBIUM IX.	DUBIUM IX.
<i>Quo jure Episcopus Romanus sit successor Petri & Vicarius Christi.</i>	<i>By what right the Bishop of Rome is the successor of Peter and the Vicar of Christ.</i>
REsp. etiamsi fide certum sit S. Petrum esse constitutum caput Ecclesiæ Christique in terris Vicarium, prout quoque ejus successores: non tamen	I answer: even though it is certain by faith that St Peter was constituted head of the Church and Vicar of Christ

<i>Latin</i>	<i>English</i>
eadem fide certum est quod primatus Ecclesiæ sit conjunctus cum Episcopatu Romano: & eapropter non solum Theologi sed & ipsi hæretici quo ad hoc punctum abierunt in diversas sententias: & quidem Calvinus prout & alii hæterodoxi hanc conjunctionem primatus universalis Ecclesiæ cum Episcopatu Romano censent factam ab Imperatoribus honoris causa, sed falso & perperam.	on earth, as also his successors, yet it is not certain by the same faith that the primacy of the Church is joined with the Roman episcopate: and on that account not only theologians but the heretics themselves have gone into divers opinions upon this point. And indeed Calvin, as also other heterodox men, judge this conjunction of the primacy of the universal Church with the Roman episcopate to have been made by the emperors for honour's sake — but falsely and wrongly.
Quia Imperatores nequeunt conferre jus in res divinas quod ipsi non habent: eo quod ipsorum potestas non possit excedere potestatem quam habent Respublicæ seculares à quibus ipsi eliguntur; & eapropter circa hoc aliter respondent Catholici quantumvis sentiis diversi: & quidem aliqui ex illis censent hanc conjunctionem factam solo jure Ecclesiastico; quorum fundamentum est quod Christus quando	Because emperors cannot confer a right in divine things which they themselves have not, for the reason that their power cannot exceed the power which the secular commonwealths have by whom they are elected. And on that account Catholics answer otherwise concerning

<i>Latin</i>	<i>English</i>
illam potestatem tradidit Petro, illam non limitaverit ad certum locum: & quod S. Petrus hac potestate uti potuerit nulla particulari sede sibi electa; prout quoque fecit temporibus anterioribus quando Alexandrinam & Antiochenam fundavit Ecclesias; adeòque sola electorum voluntate factam esse hanc con-	this, however diverse in their opinions. And indeed some of them judge this conjunction to have been made by ecclesiastical right alone; whose foundation is that Christ, when he delivered that power to Peter, did not limit it to a certain place; and that St Peter could use this power with no particular see chosen for himself, as indeed he did in earlier times when he founded the churches of Alexandria and Antioch; and therefore that this con-
junctionem: præterea posset Episcopatus Romanus cessare per urbis destructionem & tamen adhuc deberet esse aliquod supremum caput Ecclesiæ & Christi Vicarius.	junction was made by the will of the electors alone: besides, the Roman episcopate could cease by the destruction of the city, and yet there would still have to be some supreme head of the Church and Vicar of Christ.
Porrò aliorum Theologorum verosimilior est sententia hanc conjunctionem primatus totius Catholicæ Ecclesiæ cum Episcopatu Romano esse de jure Divino	Further, the more probable opinion of other theologians is that this conjunction of the primacy of the whole

<i>Latin</i>	<i>English</i>
à Christo instituto, quod licet in Sacris Litteris non sit expressum tamen per traditionem ab ipsis Apostolis videtur acceptum; cujus rei evidens est argumentum quod non tantum ante Phocam Imperatorem qui imperiali edicto contra Ciriacum Patriarcham Constantinopolitanum œcumenici titulum sibi usurpantem, controversiam de titulo œcumenici adjudicavit Romano Episcopo (in qua non agebatur de primatu totius Ecclesiæ quem omnes Romanæ Sedi semper adjudicarunt prout testatur Baronius ad annum 606.) neque tantum ante Constantinum Imperatorem aut Nicænum Concilium, sed & ab ipso exordio nascentis Ecclesiæ Episcopus Romanus ab omnibus semper Petri successor est agnitus: atque hanc Apostolorum traditionem esse, non obscure tradit Anacletus Petri Discipulus in Epistola prima de oppressione Episcoporum, item Sixtus I. in Epistola ad Gallicanas Ecclesias; item Marcellus Papa in Epistola ad Antiochenos quæ refertur à Gratiano cap. rogamus causa 24. quæst. 1. ubi sic ait „ ejus, nempe „ Petri Sedes, primitus apud vos „ fuit quæ postea jubente Domino „ Romam translata est.	Catholic Church with the Roman episcopate is of divine right instituted by Christ; which, although it be not expressed in the Sacred Letters, yet seems to have been received by tradition from the Apostles themselves. Of which thing there is an evident argument, that not only before the Emperor Phocas — who by an imperial edict, against Cyriacus the Patriarch of Constantinople who usurped the title of ecumenical to himself, adjudged the controversy over the title of ecumenical to the Roman Bishop (in which there was no question of the primacy of the whole Church, which all had always adjudged to the Roman See, as Baronius testifies at the year 606) — nor only before the Emperor Constantine or the Council of Nicaea, but even from the very beginning of the nascent Church, the Bishop

<i>Latin</i>	<i>English</i>
	of Rome was always acknowledged by all as the successor of Peter. And that this is an apostolic tradition, Anacletus, Peter's disciple, not obscurely delivers in his first Epistle on the oppression of bishops, likewise Sixtus I in his Epistle to the Gallican Churches, likewise Pope Marcellus in his Epistle to the Antiochenes, which is reported by Gratian, <i>cap. rogamus causa 24. quæst. 1.</i>, where he speaks thus: „ his see, namely „ Peter's, was first among you, „ which afterwards, at the Lord's bidding, „ was translated to Rome.
Quod certè à posteriori potest quoque probari ex eo quod non obstantibus innumeris persecutionibus quas passa est Ecclesia Romana, Pontifices tamen nunquam sedem alio transtulerunt; ex quo colligitur S. Petrum peculiari Christi mandato Sedem suam Romæ collocasse.	Which certainly can also be proved <i>a posteriori</i> from this, that notwithstanding the innumerable persecutions which the Roman Church has suffered, the Pontiffs nevertheless never transferred the see elsewhere; from which it is

<i>Latin</i>	<i>English</i>
	gathered that St Peter placed his see at Rome by a special mandate of Christ.
Petes, an Papa possit deponi à papatu.	You will ask, whether the Pope can be deposed from the papacy.
Resp. affir. & primo quidem, per spontaneam & liberam abdicationem prout fecit Celestinus V. secundo per coactionem & justam sententiam; quod probatur ex cap. si Papa distinct. 40. ubi dicitur, à nemine Papa judicandus nisi deprehendatur à fide devius, adeoque ob solum crimen hæresis.	I answer: yes; and first indeed by a spontaneous and free abdication, as Celestine V did; secondly by coercion and a just sentence; which is proved from <i>cap. si Papa distinct. 40.</i> , where it is said that the Pope is to be judged by no one unless he be found deviating from the faith , and therefore for the crime of heresy alone.
Ratio est, quia cum jus naturale concedat unicuique facultatem sese defendendi cum moderamine inculpatæ tutelæ contra injustum invasorem, hoc ipsum quoque jus competit ipsi Ecclesiæ, in casu, quo ab Hæretico Pontifice taliter invaderetur: qui consequenter etiam invitatus ab ea posset deponi, non	The reason is that, since the natural law grants to everyone the faculty of defending himself with the moderation of blameless protection against an unjust invader, this same right belongs also to the Church herself, in the case in which she should be so invaded by a heretical Pontiff; who

<i>Latin</i>	<i>English</i>
	consequently could be deposed by her even against his will, yet not
tamen ob alia qualiacumque peccata quantumvis scandalósa circa quæ valet vulgatum axioma <i>prima sedes à nemine judicatur.</i>	for any other sins whatsoever, however scandalous, concerning which the common axiom holds good, <i>the first see is judged by no one.</i>
Porrò depositio Pontificis in casu hæresis seu potius declaratio quâ declaratur pontificia dignitate privatus spectabit ad Concilium generale, vel eo non congregato ad Cardinales habentes potestatem eligendi Pontificem; eo quod utraque illa potestas, eligendi nimirum & deponendi, naturali jure censeatur connexa.	Further, the deposition of the Pontiff in the case of heresy, or rather the declaration by which he is declared deprived of the pontifical dignity, will belong to a general Council, or, if none be assembled, to the cardinals who have the power of electing the Pontiff; for the reason that both those powers, namely of electing and of deposing, are held by natural right to be connected.
<i>[End of Dubium IX; QUÆSIO III. — De authoritate Concilii. follows immediately.]</i>	<i>[End of Dubium IX; QUÆSIO III. — De authoritate Concilii. follows immediately.]</i>
BLOCK I — Tractatus I, Quæstio III, Dubium IV** ### <i>An Concilium</i>	BLOCK I — Tractatus I, Quæstio III, Dubium IV**

<i>Latin</i>	<i>English</i>
<i>generale habeat auctoritatem infallibilem non accedente auctoritate Pontificis. PDF 98–100 = printed 78–80. (The commission gave PDF 98–99 = printed 78–79; but the dubium runs on across the page-turn and ends two lines into col. b of printed p. 80, immediately before QUÆSTIO IV. Printed p. 80 was rendered from the source PDF at the same 400 dpi and is transcribed here — see sic-note I-1.) Running heads verified: p. 78 Tractatus Primus; p. 79 De Auctoritate Concilii. [the Quæstio-III recto head]; p. 80 Tractatus Primus.**</i>	<i>### Whether a general Council has infallible authority without the authority of the Pontiff being added. PDF 98–100 = printed 78–80. (The commission gave PDF 98–99 = printed 78–79; but the dubium runs on across the page-turn and ends two lines into col. b of printed p. 80, immediately before QUÆSTIO IV. Printed p. 80 was rendered from the source PDF at the same 400 dpi and is transcribed here — see sic-note I-1.) Running heads verified: p. 78 Tractatus Primus; p. 79 De Auctoritate Concilii. [the Quæstio-III recto head]; p. 80 Tractatus Primus.**</i>
<i>[...] (the preceding dubium ends “... prout neque hæretici illi, qui contrarium censent.”)</i>	<i>[...] (the preceding dubium ends “...as neither do those heretics who judge the contrary.”)</i>
DUBIUM IV.	DUBIUM IV.
	<i>Whether a general Council has infallible authority</i>

<i>Latin</i>	<i>English</i>
<i>An Concilium generale habeat authoritatem infallibilem non accedente authoritate Pontificis.</i>	<i>without the authority of the Pontiff being added.</i>
Dlco primò Concilium generale quod autoritate Romani Pontificis non est confirmatum, etiamsi sit legitime convocatum, non est infallibile, adeoque errare potest.	I say first that a general Council which has not been confirmed by the authority of the Roman Pontiff, even if it be legitimately convoked, is not infallible, and therefore can err.
Patet hoc ex Concilio generali Ephesino 2. quod legitimè con- gregatum præidentibus quoque in eo legatis Apostolicis erravit subscribendo errori Dioscori repugnantibus legatis Apostolicis; prout patet ex Epistolis 24. 25. 26. S. Leonis Papæ datis ad Theodosium & Pulcheriam Augg.	This is plain from the second general Council of Ephesus, which, legitimately as- sembled, with the apostolic legates also presiding in it, erred by subscribing to the error of Dioscorus, the apostolic legates resisting; as is plain from the Epistles 24, 25, 26 of St Leo the Pope given to Theodosius and Pulcheria, Augusti.
Idem patet ex Concilio Basiliensi quod consentiente Juliano Apostolicæ sedis legato erravit, definiens Concilium generale esse supra Pontificem sess. 2. il lius Concilii.	The same is plain from the Council of Basel, which, with the consent of Julian the legate of the Apostolic See, erred, defining that a general Council is above the Pontiff, in session 2 of that Council.

<i>Latin</i>	<i>English</i>
Ratio est, quia potestas infallibiliter definiendi controversias fidei, non fuit à Christo collata toti Ecclesiæ, sed ipsius dumtaxat capiti, idque in utilitatem Ecclesiæ, prout patet ex Scripturis supra citatis, & idcirco nisi accedat sententia legitimi Petri successoris, decreta Concilii generalis non habent infallibilitatem: nec refert quod Scriptura appellet Ecclesiam columnam & firmamentum veritatis, contra quam portæ inferi non prævalebunt, quia id intelligitur de Ecclesia capiti suo unita.	The reason is that the power of infallibly defining controversies of faith was not conferred by Christ upon the whole Church, but upon its head alone, and that for the profit of the Church, as is plain from the Scriptures cited above; and therefore, unless the sentence of the legitimate successor of Peter be added, the decrees of a general Council have not infallibility. Nor does it matter that Scripture calls the Church <i>the pillar and ground of the truth</i> , against which the gates of hell shall not prevail, because this is understood of the Church united to her head.
Petes, an Concilium generale per legatos summi Pontificis celebratum sit infallibile ante confirmationem ipsius Pontificis.	You will ask, whether a general Council celebrated by the legates of the Supreme Pontiff is infallible before the confirmation of the Pontiff himself.
Resp. negat. quia Deus non dedit legatis infallibilitatem in definiendo, sed Petro ejusque successoribus cui dixit Lucæ 22.	I answer: no. Because God did not give infallibility in defining to the legates, but to

<i>Latin</i>	<i>English</i>
<i>Ego rogavi pro te Petre, ut non deficiat fides tua.</i>	Peter and his successors, to whom he said, Luke 22: <i>I have prayed for thee, Peter, that thy faith fail not.</i>
Petes, an Concilium generale legitimè convocatum absente Papâ non sit infallibilis autoritatis.	You will ask, whether a general Council legitimately convoked, the Pope being absent, is not of infallible authority.
Resp. hoc aliquos affirmare, eo quod repræsentet universalem Ecclesiam, quæ in Spiritu Sancto congregata habet Spiritum Sanctum infallibiliter assistentem.	I answer that some affirm this, for the reason that it represents the universal Church, which, gathered in the Holy Ghost, has the Holy Ghost infallibly assisting.
Quibus non obstantibus.	Notwithstanding which:
Resp. negat: nam tota Ecclesia non intelligitur sine capite, in quo residet autoritas infallibiter definiendi; quippè cui soli concessa est facultas confirmandi fratres in fide, & pascendi oves Christi: & ea propter eatenus tantum Concilium generale errare non potest, quatenus includit caput suum, seu quatenus illud præmittitur tanquam conditio prævia ad definitionem Pontificis.	I answer: no. For the whole Church is not understood without her head , in which resides the authority of infallibly defining, since to him alone was granted the faculty of confirming his brethren in the faith and of feeding the sheep of Christ. And on that account a general Council cannot err only so far as it includes its head, or so far as it is

<i>Latin</i>	<i>English</i>
	premised as a previous condition to the definition of the Pontiff.
Petes, an Concilium generale saltem hanc infallibilitatem non habeat Sede Pontificia vacante, aut tempore schismatis, vel depositionis ipsius Pontificis.	You will ask, whether a general Council has not at least this infallibility when the pontifical See is vacant, or in the time of a schism, or of the deposition of the Pontiff himself.
Resp. negat. quia neque ex Scriptura neque ex traditione constat, Concilium generale ejusmodi potestatem à Deo accepisse: quin potius constat oppositum ex continua praxi Ecclesiæ, quæ nulla decreta à Concilio generali sancita censet habere aliquod robur, nisi confirmata à Pontifice legitimè electo.	I answer: no. Because neither from Scripture nor from tradition is it established that a general Council received such a power from God; nay rather, the opposite is established from the continual practice of the Church, which judges that no decrees sanctioned by a general Council have any force unless confirmed by a legitimately elected Pontiff.
Petes, an decreta Concilii generalis, vel provincialis in materia fidei sint infallibilia, si hæc à summo Pontifice confirmentur.	You will ask, whether the decrees of a general or of a provincial Council in a matter of faith are infallible, if these be confirmed by the Supreme Pontiff.

<i>Latin</i>	<i>English</i>
Resp. affirm. quia potestas Petro collata ejusque successoribus non fuit limitata ad Concilium generale, sed dumtaxat ut supra diximus ad modum humanum scilicet, ut illa non definiantur à Pontifice sine prævio consilio virorum piorum & Doctorum juxta materiæ gravitatem, ad id congregatorum.	I answer: yes. Because the power conferred upon Peter and his successors was not limited to a general Council, but only, as we said above, to a human manner, namely, that such things be not defined by the Pontiff without the previous counsel of pious and learned men, gathered for this according to the gravity of the matter.
Petes, an Concilium generale in condendis suis decretis procedat viâ inquisitionis, an verò viâ judiciali & definitivâ.	You will ask, whether a general Council in framing its decrees proceeds by way of inquiry, or rather by a judicial and definitive way.
Resp. Doctores Theologos & juris Canonici ad Concilium convocatos procedere solâ viâ inquisitionis, examinando & indagando veritatem. Episcopos verò & quotquot alii in Concilio habent jus suffragii, procedere viâ judiciali & decisivâ tam in controversiis fidei, quam legibus concernentibus universalem Ecclesiam.	I answer that the doctors of theology and of canon law summoned to a Council proceed by the way of inquiry alone, examining and searching out the truth; but that the bishops, and as many others as have a right of vote in the Council, proceed by the judicial and decisive way, both in controversies of

<i>Latin</i>	<i>English</i>
	faith and in laws concerning the universal Church.
Dices, Episcopi non habent suffragium ultimo decisivum, sed solus Pontifex, eo quod ad ipsum spectet ferre sententiam, cui omnes alii suffragantes obedire tenentur & ipse solus habet suffragium à Spiritu Sancto directum, reliqui verò suffragantes à veritate deviare possunt, prout & de facto quandoque deviant	You will say, the bishops have not the ultimately decisive vote, but the Pontiff alone, for the reason that it belongs to him to pronounce the sentence, whom all the other voters are bound to obey, and he alone has a vote directed by the Holy Ghost, whereas the remaining voters can deviate from the truth, as indeed they sometimes do in fact deviate,
dum nimirum ante confirmationem Pontificis præcedunt oppositæ prorsus suffragantium sententiæ.	namely when, before the confirmation of the Pontiff, there go before wholly opposed opinions of the voters.
Resp. verum esse Pontificem in Concilio generali habere suffragium ultimo decisivum, sed ex illo non sequitur Episcopos non habere suffragium simpliciter decisivum, sed bene quod illud habeant subordinatum suffragio Pontificis: neque enim ejusmodi subordinatio tollit simpliciter suffragium decisivum, ut patet in prætore, qui habet	I answer that it is true that the Pontiff in a general Council has the ultimately decisive vote, but from that it does not follow that the bishops have not a simply decisive vote, but rather that they have it subordinated to the vote of the Pontiff; for a

<i>Latin</i>	<i>English</i>
vocem decisivam quantumvis subordinatam sententiæ Principis.	subordination of that kind does not take away a simply decisive vote, as is plain in the praetor, who has a decisive voice, however much subordinated to the sentence of the prince.
Præterea suffragium Episcoporum est fallibile, Pontificis vero est infallibile.	Besides, the vote of the bishops is fallible, but that of the Pontiff is infallible.
Dices, si Episcopi procedant in Concilio viâ definitivâ, obligabitur Pontifex in decidendis fidei controversiis sequi majorem partem suffragiorum.	You will say, if the bishops proceed in a Council by the definitive way, the Pontiff will be obliged in deciding controversies of faith to follow the greater part of the votes.
Resp. negan. conseq. sed tenebitur sequi majorem evidentiam credibilitatis: nam cum Concilium generale, sicut & quævis alia humana consultatio, quam Pontifex præmittit ante definitionem fidei, ad hoc prærequiratur, ut fiat Pontifici evidenter credibile, quænam pars controversiæ sit vera & à Deo revelata, obligabitur Pontifex sequi eam partem suffragiorum, quæ majorem evidentiam credibilitatis secum fert, quod res definienda sit à Deo revelata.	I answer, denying the consequence; but he will be bound to follow the greater evidence of credibility. For since a general Council, like any other human consultation which the Pontiff premises before a definition of faith, is prerequired for this, that it may be made evidently credible to the Pontiff which

<i>Latin</i>	<i>English</i>
	part of the controversy is true and revealed by God, the Pontiff will be obliged to follow that part of the votes which carries with it the greater evidence of credibility that the matter to be defined is revealed by God.
[End of Dubium IV; QUÆSTIO IV. — De Scripturâ Canonicâ. follows immediately.]	[End of Dubium IV; QUÆSTIO IV. — De Scripturâ Canonicâ. follows immediately.]
BLOCK J — one paragraph: <i>Resp. omnem hæreticum esse schismaticum...</i> ### Quæstio on heresy and schism (Q. ..., Dubium III, immediately before DUBIUM IV <i>Quibus pœnis afficiantur hæretici</i>) PDF 182 = printed 162.** Running heads verified: p. 162 (verso) <i>Tractatus Primus</i>; the facing rectos (pp. 161, 163) read <i>De Hæresis</i>. The commission described this as “Tractatus III”; the page in fact stands in Tractatus I (De Fide), in its treatment De Hæresi — see sic-note J-1.**	BLOCK J — one paragraph: <i>I answer that every heretic is a schismatic...</i> ### Quæstio on heresy and schism (Q. ..., Dubium III, immediately before DUBIUM IV <i>By what penalties heretics are punished</i>) PDF 182 = printed 162.** Running heads verified: p. 162 (verso) <i>Tractatus Primus</i>; the facing rectos (pp. 161, 163) read <i>De Hæresis</i>. The commission described this as “Tractatus III”; the page in

<i>Latin</i>	<i>English</i>
	fact stands in Tractatus I (De Fide), in its treatment De Hæresi — see sic-note J-1.**
[...]	[...]
Petes, an omnis hæreticus sit schismaticus, & econtra.	You will ask, whether every heretic is a schismatic, and conversely.
Resp. omnem hæreticum esse schismaticum quatenus recedit ab universa Ecclesia recusans fidei Articulis ab ea propositis dare assensum: econtra tamen non omnis schismaticus debet esse hæreticus; quia nimirum fieri potest quod quis renuat obedientiam summo Pontifici, esto credat illum esse Christi vicarium, & assentiatur omnibus Articulis fidei.	I answer that every heretic is a schismatic inasmuch as he withdraws from the universal Church, refusing to give assent to the articles of faith proposed by her; conversely, however, not every schismatic must be a heretic; for it can happen that someone refuse obedience to the Supreme Pontiff, even though he believe him to be Christ's vicar , and assent to all the articles of faith.
Petes, quid ergo sit schisma.	You will ask, what then schism is.
[...]	[...]